

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

Court File No.S775/1999

STEPHANIE SUZANNE WALKER, GARY) Mr. Carl E. Fleck, Q.C., and Ms. Cathy
WALKER, ROSEMARY WALKER,) Wilde for the Plaintiffs
LAURA WALKER, ALYSSA WALKER and)
CHRISTINE WALKER, an infant by her)
litigation guardian GARY WALKER)

Plaintiffs)

- and -)

DONALD J. RITCHIE, HAROLD MARCUS) Mr. William G. Woodward, Esq., for the
LIMITED and THE WAWANESA) Defendants Ritchie and Marcus Limited and
MUTUAL INSURANCE COMPANY) Mr. James R. Adams, Esq., for the
Defendant Wawanesa)

Defendants)

AND B E T W E E N:

Court File No. S1728/2001

STEPHANIE SUZANNE WALKER, GARY) Mr. Carl E. Fleck, Q.C., and Ms. Cathy
WALKER and ROSEMARY WALKER) Wilde for the Plaintiffs

Plaintiffs)

-and-)

THE WAWANESA MUTUAL INSURANCE)
COMPANY) Mr. James R. Adams, Esq., for the
Defendants)

Defendants)

) **HEARD:** September 10, 11, 12, 13, 16, 17,
) 18, 19, 2002

) at Sarnia, Ontario

Brockenshire, J.

[1] These two actions came on for trial together before me in Sarnia, commencing on September 10, 2002 after a trial management conference on September 9th, and continuing through to September 19th. The action involved a motor vehicle accident which occurred April 17, 1997. In addition to the issues between the plaintiffs and the other vehicle's driver and owner, there were also issues re coverages available to the plaintiffs under the insurance on their own vehicle. For possible convenience, I include an index to various items covered:

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BACKGROUND

[2] The principal plaintiff is Stephanie Walker (Stephanie), who on the date of the accident was a 17 year-old, Grade 12 student in high school in Sarnia. The other plaintiffs are her mother and father and her three sisters. The defendant Donald J. Ritchie (Ritchie) was the driver of a tractor or cab, driven in his employment with Harold Marcus Limited (Marcus) which owned the trailer pulled by the tractor or cab. The Wawanesa Mutual Insurance Company (Wawanesa) was the insurer of the Walker vehicle, a van owned by Garry Walker, Stephanie's father.

[3] On April 17th, 1997 at around 10:00 p.m., Stephanie was driving her friend Kurt Cope home after a visit at the Walker home. Her sister Christine had come along for the ride. The trip took them southerly along the Telfer Side Road, which although within the limits of the City of

Sarnia is a rural type, two-lane straight paved road running past fields and the occasional home towards the 402 Highway, with the Sarnia Airport to the west. At approximately the same time, Ritchie was coming home from his day's work, driving his own tractor, and pulling the Marcus trailer. Ritchie's home was on the east side of the Telfer Side Road. He drove just past his laneway, stopped, and intended to back the trailer and tractor into his lane. Unfortunately, while so doing, the rig got stuck. He finally got the rig to move again, and was trying to pull it back into the northbound lane as the Walker vehicle approached in the southbound lane. He didn't completely make it. The Walker vehicle struck the rear of the Marcus trailer and flipped and vaulted into the ditch on the west side of the road. Stephanie suffered a major head injury, and other injuries. She has no recollection of the accident, or of events for some time both before and after it.

LIABILITY OF RITCHIE

[4] I heard the evidence of Ritchie, Stephanie's sister Christine and also of Constable Gary Bentley, who investigated this accident, Dr. Saud Nassar, an accident reconstruction expert, Randolph Badiuk, the safety manager at Marcus, and two ladies that had close calls on that road with a truck, in relation to liability issues.

[5] Christine, Stephanie's younger sister, now 20 and a student at George Brown College in Toronto, testified as to her recollection of the accident. She was in the middle seat of the van that her sister was driving. It was a cold dry dark night. They were going south on the Telfer Side Road, a two-lane, dark, side road. She didn't see the speed on the speedometer but it felt right – she would say 70 – 80 km. They were in no hurry. She knew her sister to be a safe driver. There were no vehicles ahead of them going in the same direction. She saw headlights ahead, which appeared to be normal oncoming traffic. Then out of nowhere right in front of them, she saw “a big wall with some lines down it.” She said “it felt as if we swerved” and she believes her sister yelled, then when they hit, she was knocked unconscious. In cross-examination she admitted she was not paying any particular attention before the collision because, as she said, it just seemed as if this was a normal oncoming vehicle.

[6] Danielle Sauve-Gordon, a teacher, told the Court how in 1995 she was driving on this road after 8:00 p.m. on a foggy night, when she suddenly realized she was “coming face to face with a tractor-trailer” which was completely blocking the southbound lane. She stopped, fortunately in time, caught her breath and drove on, but called the police afterwards to report what she felt was a dangerous incident. In cross-examination she clarified that in her incident, the tractor was straight across the road with the trailer behind it in a laneway.

[7] Catherine Hickling also testified. She is a service representative with Bell Canada. In 1996 she was going south on the Telfer Road on a clear evening when she saw the tractor of a truck on the northbound lane facing her and appearing to come towards her, but then the tractor appeared to be standing still. She got close, and saw the trailer parked part way across her lane of the road. She slammed on the brakes and fortunately stopped in time.

[8] Ritchie testified at length. He is 49, and has always worked as a driver. He has held an AZ licence since 1978. He had driven dump trucks and fuel trucks and then in 1993 came to work for Marcus hauling garbage with a tractor-trailer. At first he drove a tractor owned by Marcus but then he got his own tractor and thereafter worked as an owner/operator. Almost exclusively he hauled a five-axle trailer, two of the axles of which were lift axles, and three were fixed. On the day of the accident he had been supplied with a six-axle tractor which he (and others) said was about the same size and weight but had three lift axles, with the front one further forward than on the five axle tractor-trailer. He drove a more or less regular route from Port Perry in Ontario to a suburb of Flint Michigan, hauling garbage, and as his home was a short distance off of the 402 Highway, it was convenient for him to park the rig in the driveway of his home overnight. He lived on a two-acre parcel shown in the foreground on aerial photograph Exhibit 5-3. Before the accident he had no place on his property to turn his vehicle around, and he always backed in, then pulled out forwards because he understood it to be illegal to back his rig out on to the road. After the accident he cut down a tree on his property which gave him room to turn around so that he could drive in and then drive out of his lane.

[9] He admitted that the vehicle the two ladies had complained about was likely his, as he was not aware of any other truckers on that stretch of the road who parked their vehicles on their property, but he had not heard of any complaints whatsoever until after the accident and in fact recalled police cruisers seeing him carrying out his maneuver into his driveway and saying nothing about it.

[10] On this particular day he had dropped his load in Michigan and was coming home for the night empty. Even empty, this six-axle tractor-trailer weighed some 25 tons. After he had unloaded in Michigan he hoisted the three movable axles on the trailer. As usual, he went just past his driveway, put on his left turn signals, and reversed back his driveway. He saw no traffic moving in either direction on Telfer Road. When about half of the 48 foot long trailer was into his driveway, his tractor seemed to lift a bit and he lost traction. He realized the wheels on the raised front axle of the trailer were catching the crown of the road and lifting the rear of the tractor so that the wheels lost traction. This loss of traction made his rig move very slowly and then it stopped. He then locked the differential at the rear of his tractor, a maneuver he apparently carried out with a control in the cab, so that all four drive wheels at the rear of the cab would have power despite one or more of them being clear of the road. He then pulled his tractor a bit forward and thought he could back in; he started to do this and lost traction again. At that point he saw lights in the southbound lane coming towards him, which he placed as near Michigan Road, a bit less than a mile away. When he saw this he wanted to get his trailer out of the driveway and from across the road, as a common courtesy, so as to not block the road. He put his tractor into second gear, which he described as the lowest practical gear on his tractor, and started pulling ahead. His tractor was "breaking traction" but was moving so he kept pulling ahead as the car was coming closer. He said that in second gear the rig would move, at best, at two or three miles per hour. He kept pulling ahead as the approaching vehicle came closer. Initially he had no idea of the speed of the other vehicle. After he started to pull forward on the road, the trailer was coming out of his driveway, and to him it looked like there would be no problem. When he thought he had the trailer all the way out of his driveway, he thought the

oncoming vehicle was travelling very fast. He guessed at 100 km/hr. He thought he had the trailer pulled out to his side of the road in time, but he found after the accident that he didn't have it fully over. He saw the oncoming vehicle hit the back of his trailer and flip or vault into the ditch.

[11] Ritchie was most cooperative with Constable Bentley, who investigated this accident. This officer had been specially trained in accident investigation and reconstruction. He was at the scene within an hour. He confirmed that it was dark, dry and cold. Telfer Road runs north and south, the paved portion of the road is seven and half metres wide, with gravel shoulders. It is straight and level with a noticeable crown. The speed limit is 80 kilometers per hour. The only street light in the area is 200 metres north, at an intersection. The trailer, shown in Exhibit 5-4, was painted a dark red, had no reflectors or reflective tape along the side, but did have five small amber lights, which he described as two inches by one and one-half inches, just above the lower rail of the trailer, and a further amber light, connected to the turn signals and flashers of the tractor, midway under the lower rail of the trailer.

[12] His investigation placed the point of impact in the southbound lane one half of a metre past the center line. There was an oval of debris on the road, extending west from the center line in the southbound lane, with what he identified as the impact point being in the center of the oval and marked by a gouge in the pavement.

[13] He took a videotaped statement from Ritchie. That statement on consent was entered as Exhibit 21. In it, Ritchie said essentially what he said in court.

[14] Ritchie cooperated in doing two reenactments. These reenactments were videotaped and the videos were played in court. The first was done during the day, using the same tractor and trailer, and was for the purpose of showing how the trailer got caught on the crown of the road. It showed how the tires on the raised front axle of the six-axle trailer caught on the crown of the road when the trailer was backed in, lifting the back end of the tractor. In fact in this reenactment, Ritchie attempted to straighten his tractor and pull more directly on the trailer, with the result that the left front wheel of his tractor went off the road into the soft gravel of the shoulder and got stuck there so that a tow truck was needed to pull the rig out.

[15] The second reenactment was done at night, with Ritchie doing again what he was doing on the night of the accident – trying to back into his driveway and then pulling forward to get out of the way while Constable Bentley drove towards the tractor and trailer. The evidence of Constable Bentley was, and the video showed, that as the police cruiser approached, the headlights of the tractor could be seen as a vehicle approaching from the other way, and lights could be seen in the southbound lane. However, as Constable Bentley testified, there were lights from vehicles on Highway 402 to the south of the scene and also lights from houses from a subdivision further south, and the small side lights on the trailer were at about the same level as those other lights, creating the illusion that what was being seen with the trailer across the southbound lane was the same as what would be seen when that lane was clear. It was Constable Bentley's evidence, unshaken in cross-examination, that even though he knew the trailer was in

fact across the northbound lane, as he approached it in that lane at a slow speed, keeping a careful lookout, he could not see the trailer until after he was past the headlights on the tractor.

[16] Constable Bentley drew upon his training and experience to attempt to work backwards, and arrive at a possible or probable speed of the van before collision. He had to deal with a vehicle that had lost speed through a collision, through skidding on pavement, gravel and grass, and then flying through the air to land in a ditch. He obtained coefficients of friction for the pavement, gravel and grass by using a standard sled, dragged repeatedly over these materials. However, he had to make estimates of the speed lost in the collision and the speed lost in the eventual flight through the air, where the takeoff angle, is the critical factor. Using a 45 degree takeoff angle, he got 78 km/hr. Using a zero degree takeoff angle, which he advised at trial should not have been used, since the vehicle obviously vaulted into the air, he arrived at 112 km/hr. While he had these numbers from his calculations, his best conclusion was that he could not say that the van was speeding or that the speed of the van contributed to the accident.

[17] Dr. Saud Nassar was called. He has a doctorate in civil engineering and does transportation and safety engineering. He has done over 500 reconstructions. His best estimate of the speed loss in the collision, from photographs of the car and of the truck was at a loss of 30 km/hr. He felt the police officer had not made a proper estimate of that. Further, he felt that the officer had not built into the calculations the fact that the vehicle spun on the pavement, gravel and grass before vaulting into the air. He agreed that the 30 km/hr loss on the crash was an uncertain estimate and further agreed that the angle of take-off would be uncertain, but certainly was not zero. Using a 45 degree takeoff he worked backward to a speed of 46 km/hr immediately before the crash. Using half of that or 22.5 degrees, he arrived at 69 km/hr for the van before the crash.

[18] My conclusion from all of the reconstruction efforts is that the expert evidence supports the evidence of Christine, who was in the vehicle, that the van was travelling within the speed limit.

[19] Dr. Nassar was asked to comment on Constable Bentley's video of the reenactment and the Constable's own comments on not being able to see the trailer until he was past the lights of the tractor. Dr. Nassar agreed that the video showed the headlights as dominating the view of this rig as it was approached, with a glare effect that would interfere with seeing other much dimmer lights or the dark trailer itself. He also agreed that the trailer lights would mix with the background lights some of which (cars travelling on the 402 Highway) would appear to flicker. His evidence was that clearly if the trailer could not be seen until an approaching vehicle was past the tractor headlights, then the approaching driver not only could not stop but couldn't even start to properly react to the danger. In cross-examination he was asked if the video, which showed the trailer first appearing after the tractor headlights were passed, might not be inaccurate, and whether the human eye might have picked up the trailer even if the camera did not. He said his own experience from videotaping things like this on numerous occasions was that the video camera picks up more than you could see with your own eyes.

[20] My conclusion from the evidence on liability was that there was nothing that Stephanie could have done to have avoided this accident. She was driving in a careful cautious manner and could not see anything that would warn her of a danger until it was too late. She could not see the trailer until she was past the headlights of the tractor, and she could not see the signal lights on the tractor or the trailer, nor the small amber side lights on the trailer, because of the headlights on the tractor and because of the confusing background lights.

[21] On the other hand, Ritchie was pulling a six-axle 25-ton trailer some 48 feet long. This is a trailer he seldom pulled, the last time being a year or so previously. He got stuck on the crown of the road. He had had that happen before, although previously not as badly. This time he could not get his rig moving. He then locked up the differential on his rear axles, tried it again, got a bit of traction, pulled forward, thought he could then back in, tried that, and got stuck again. He then saw lights in the southbound lane coming towards his trailer. He put his tractor in second gear forward, and started to very slowly pull the trailer across the southbound lane, trying to get it into the northbound lane, so that the southbound van would not hit it. Obviously he did not succeed.

[22] When he got stuck on the crown of the road, his vehicle was disabled. If he did not realize this at once, as he should have, he surely would have realized it after his initial efforts to go forward and backward failed. By then he knew the van was coming towards the rig and that his trailer was across the southbound lane. Then, for sure, he should have realized that he did not know how long it might take to get free and that he might even need a tow truck, as in fact he did at the daytime reenactment.

[23] The prudent thing for him to have done would have been to stop his efforts, preferably as soon as he got into trouble, but certainly once his initial efforts to get free had failed, and warn vehicles travelling both ways. Having seen the van approaching at a distance, he should have gotten out of his rig with a flash light, which he would have had in his truck (or certainly should have had) run toward the van and waved it down before it got into a situation of danger. Further, he could have called his wife, inside his home, on his cell phone, as he had a few minutes earlier, and asked her to help warn traffic. Failing all of that, he should have at least immediately put out the reflective triangles, with which his rig was equipped, to warn traffic on the highway.

[24] Only when he knew that he was not endangering anyone else, should he have resumed his efforts to free his rig.

[25] Having failed to do any of these things, his obligation would have been to at least put on his hazard lights rather than simply his turn signal, and if the van did not appear to be slowing down at a distance, to have blinked his headlights from high to low beam, or better yet from on to off, to warn the vehicle, and if it still kept coming to use the air horn which he had mounted in his truck, and which he said could be heard far away.

[26] None of these things were done. He just tried going back and forth again, finally got moving very very slowly, and as the van approached simply kept moving and hoping he would be clear in time.

[27] I find Ritchie 100 per cent responsible for the accident.

LIABILITY OF MARCUS

[28] Marcus was the owner of the trailer, but not the tractor. Marcus was Ritchie's employer, and had clearly accepted Mr. Ritchie's practice of taking both the tractor and trailer home at night as part of his employment. In fact, the very night before, Ritchie had gone home part way through a trip, with a fully loaded trailer. Ritchie's maneuvers on this evening were carried out as part of his employment and Marcus would be responsible therefore as his employer. Further, while Ritchie was the owner of the tractor in the property sense, under s.192 of the *Highway Traffic Act*, imposing obligations on "owners" of vehicles, there are any number of cases indicating that for the purposes of that statute, the "owner" is the person having dominion over, and the control of the vehicle, which in the case of commercial vehicles has been repeatedly interpreted as the employer of the independent owner. Therefore, Marcus would be jointly and separately responsible with Ritchie under the Statutory Highway Traffic Act provisions. This was not contested by the defense counsel for Ritchie and Marcus.

UNPROTECTED DEFENDANT

[29] What was contested was whether or not Marcus could be treated as an "unprotected" defendant for purposes of the relevant insurance statute (Bill 59). The argument was that precisely because Marcus would fit the definition of the "owner" of the tractor, as well as the trailer, Marcus would be entitled to statutory immunity under the insurance regime, which provides for thresholds, deductibles and restrictions on claims under various heads of damages.

[30] In this whole area, I am assisted by the very careful analysis of the law by Molloy, J. in *Pugsley v. Rahbar* [2002] O.J. No. 2779. The conclusions she reached, which I accept, are that the employer is a non-protected defendant in relation to its own acts, and acts of its employee that are not related to the operation of the vehicle at the time of the accident, and this is not affected by the provisions in the *Highway Traffic Act*, and in the *Insurance Act*, that would put the employer into the position of the owner of the vehicle.

[31] The statement of claim contains very brief and very general allegations of negligence against Marcus, separate and apart from what happened on the night in question, including an allegation about allowing Ritchie to park his rig at his own home, and others about failing to instruct him in the proper and safe operation of the vehicle, and in the use of safety equipment.

[32] During the course of the trial, on the basis that defense counsel were made aware that the issue would be raised, evidence was called and a video presentation shown to the court on the use of reflective tape on trucks and trailers, as a safety device to assist in preventing collisions between automobiles and trucks and trailers. That presentation was most persuasive in pointing

out that collisions of this type are, unfortunately, fairly common, that what is referred to as “conspicuity” is a well recognized difficulty, and that the use of reflective tape will lessen the number of accidents of this type. At the time of this accident, while new regulations were being spoken of, there was no legal requirement for putting reflective tape on trailers. However, there had been some discussion in the trucking association materials, and Mr. Badiuk, Manager of Safety Policies for Marcus, testified that the company in fact was reviewing various recommendations and testing this tape on a trailer to see how well it stood up, in anticipation of eventual legislation. During argument at the end of the trial, Mr. Fleck moved to amend the statement of claim to plead that reflective tape should have been used on the trailer, and that motion was granted.

[33] My conclusion in regard to the allegation that Marcus should have installed reflective tape on its trailer is that it was not required to at the time, either by universal industrial practice or legislation, and in any event on the particular facts of this case, on the balance of probabilities it would not have helped. I base for the latter conclusion on the video presentation which was run. These reflective tapes appear to be very effective when a trailer is at right angles to an approaching vehicle, because the tape reflects back the headlights of the car. However, this reflectivity drops off as the angle between the trailer and the approaching car becomes more acute. In this particular accident, at the time of collision, Ritchie had succeeded in pulling the tractor nearly all of the way into the northbound lane, with the trailer of course straightening out behind the tractor as it went. I therefore conclude that even if reflective tape had been placed on the sides of that trailer, its angle to the approaching Walker vehicle would have resulted in little if any of the light from the headlights from the Walker vehicle reflecting back to the driver.

[34] Separate and apart from that issue, there were other areas of negligence on behalf of Marcus, raised in the pleadings, that became live issues in the evidence. Firstly, Ritchie testified that although he had been driving trucks for all of his working life, he first became involved in driving large tractor-trailer rigs when he started with Marcus. The totality of his special training for operating these very large vehicles consisted of one week during which a safety person drove with him.

[35] Mr. Badiuk held the title of Manager of Safety Policies with the company but it seemed from his evidence that the safety with which he was concerned was the safety of the vehicles, rather than of the drivers and the public. He testified to the regular inspections carried out of the trailers and tractors throughout the year but he only had a safety meeting with the drivers once a year in April. That consisted of running a film on safety, which would be general and not specific to such problems as blocking roads, or the lack of visibility of trailers at night.

[36] The only mention made of air horns, was not to blow them near passenger cars as they would startle the drivers. There was no mention by Mr. Badiuk or Ritchie of any discussion by the company of what must have been known by the company to be a problem – the possibility of the wheels on raised axles getting caught on the crown of the road or other unevenness. Nor was there any mention of any instruction as to how to deal with the problem.

[37] The company was aware that Ritchie was taking his rig home at night but did not know, and did not bother to find out, what the layout was at Ritchie's home, whether he had to back in or could turn around on his property, and what problems he might have in maneuvering this very large vehicle into and out of his private driveway. The concern seemed to be limited to knowing where his home was and whether the road he was on would be plowed in the winter so that there would not be downtime for the rig.

[38] Marcus was encouraging its drivers to take their rigs home because, on the evidence, while it had a yard in the Sarnia area, that was mostly taken up with fuel trucks. Common sense would dictate that the company make sure, if its vehicles were to be left over night off site, that the places they were left were safe, including safe ingress and egress. The company left the latter to "the good judgment" of its drivers. In my view, it abdicated its responsibility to the public in that regard.

[39] Hindsight, after this tragic accident, makes it obvious that the once-a-year safety film was not a full and sufficient safety program for a company putting large tractors and 25 ton six-axle trailers on the road. We have evidence here that, before this accident, two other drivers found themselves imperiled by the actions of Ritchie, and yet he was not even aware that he had created a risk. On the night of this accident, he did not recognize that his vehicle was disabled, and he did not take any of the litany of steps above outlined to protect the other users of the highway. None of these things occurred to him. If he had been sufficiently and properly trained he would have immediately realized his obligations to warn the oncoming vehicle by the use of such devices or measures as safety triangles, flagging down, lights and his horn. A good and efficient safety program, including multiple repetitions, would have insured that he not only thought of all of these things but that he did them.

[40] I find that Marcus was negligent in permitting Ritchie to park in his own driveway when backing into that driveway at night was inherently unsafe; and was negligent in failing to properly train Ritchie in the safe operation of the vehicle, and in particular his obligation to warn other users of the highway when the positioning or maneuvering of his vehicle created a potential risk of damage or injury. Without that negligence this accident would not have happened. I find this negligence to be concurrently responsible for this accident.

[41] I find that this negligence, separated in time and space from the actual accident, leaves Marcus in the position of an unprotected defendant under the *Insurance Act*.

[42] No submissions were made to me as to the apportioning between or among insurers. If that should be an issue as between a fleet policy and a general liability policy for Marcus, or in relation to a separate insurer for Ritchie, such submissions can be made to me later. I anticipate that there may also be submissions as to the effect of *Sullivan Estate v. Bond* (2001) 55 O.R. (3d) 97, on assessments of damages made herein.

STEPHANIE'S INJURIES

[43] Plaintiff's counsel pleaded that "Stephanie sustained catastrophic, permanent and serious injuries leaving her with residual paralysis and irreversible cognitive deficits. These will affect Stephanie's ability to function personally, socially and in the work place for the balance of her life." These broad statements were proved through the evidence of a number of expert and ordinary witnesses at the trial. There is no question that she was very seriously injured. The issues relate to the exact level of severity, and the exact continuing effects.

[44] Before the accident, Stephanie was in her final year of a four-year general high school program. She was an above average student. She had a very active social life, with a great number of friends, and was an exceptional athlete. She played volleyball and basketball, was on a swim team and was an outstanding soccer player. Her soccer coach told us of her team getting up to the Ontario Finals, of all of the team being scouted by American universities and of other players, not as good as Stephanie, being offered "full ride" scholarships to American universities.

[45] After the crash, the "jaws of life" were required to get her out of the van. She was taken to Sarnia General Hospital where her Glasgow Coma Score was reported as 5-6. She was stabilized there and then transferred to Victoria Hospital in London where her Glasgow Coma Score was measured at 6/15. Dr. Emilie Newell, in a consultation report of May 6, 1997 (Ex. 6), described her injuries as follows:

- severe traumatic brain injury characterized as diffuse axonal injury; CT head scan showed a small right basal ganglion haematoma, left front contusion, bitemporal contusions and contusions in the corpus callosum on the left side; small subarachnoid haemorrhage; haematoma in the area of the left occipital horn. Cerebral edema with shift was noted.
- comminuted fracture of the right ulna at the junction of the proximal and middle thirds, with angulation.
- fracture of the proximal phalanx of the left middle finger.
- small osteochondral chip of bone anteriorly in the left ankle with a very small area of articular surface involved.
- lacerations of the right forehead and the left anterior shoulder.

[46] On May 6, some three weeks after the accident, Dr. Newell found her to be at the best semi-conscious, with a Glasgow Coma Score of 10-11, and with the appearance of momentarily focusing on the examiner's face, but with no verbalizations and not following any commands.

[47] Stephanie was transferred to Parkwood Hospital for rehabilitation work, then in October of 1997 was discharged home, with a wheel chair and a three-prong cane. She continued outpatient rehabilitation at St. Joseph's Hospital in Sarnia. By Christmas of 1997 she was finally able to get up the stairs to the second floor of her two-storey home.

[48] There are various estimates of how long she was in a coma, ranging from six weeks to three months. She went into a coma immediately upon suffering the injury. She came out slowly, and the differences would relate to when she was felt to be completely out of that state.

[49] She has no recollection of the accident or of events for a lengthy period both before and after the accident. Dr. Goldstein, in his report (Ex. 8), puts the period of amnesia as extending from January 7th or 8th of 1997 to July 11th of 1998.

[50] During the trial Mr. Adams, counsel for Wawanesa, conceded that Stephanie's injuries met the definition of "catastrophic" under the regulations under Bill 59 for the purpose of increased limits for claims, based on the depth and length of her comatose state.

RESIDUAL PROBLEMS

[51] Dr. Goldstein, a neurologist, did a medical legal assessment of Stephanie on August 23, 1999, and an update on October 18, 2001. These are Exhibits 8 and 9. He testified at the trial. Dr. Goldstein concluded that haemorrhage, caused by the accident, into the right basal ganglia, which has an important role in motor function, left her with severe motor disability of the upper left extremity and left lower extremity. She has a marked spasticity of the upper left extremity and the left lower extremity. In her left arm, there was reasonable power at the level of the elbow, but all movements of the arm were done very slowly. She had no voluntary movements at the wrist or the hand. In her left leg, she had good power at the knee with slow movements at that site but poorer voluntary power from the knee downwards. She was able to walk with the use of a cane for limited distances. She had a marked increase in reflexes in the left lower leg and an up going left toe.

[52] He found that her eyes moved in little jerks rather than smoothly, which would affect her ability to read. She had a mild left facial droop. Her tongue movements were described as slow and spastic. She had dysarthric or slurred speech.

[53] Dr. Goldstein also found that she had continuing significant cognitive dysfunction and emotional and significant negative personality problems. He attributed these to injury to the frontal lobe of the brain and the tearing of brain tissue which would have interrupted the transmission of millions of axons, which cannot regenerate. He identified difficulty with her finding words and having to stop or use other words when speaking, short term memory impairment, a general slowing in her ability to think and reason, and personality problems including being easily angered and having temper tantrums.

[54] Dr. Goldstein examined her again in October of 2001 and found, as he expected, no significant change in her symptoms except that she seemed to have improved in terms of temper control.

[55] Dr. Goldstein's prognosis was that she has "plateaued out". Therefore, no further significant improvement in cognitive, personality or motor function is to be expected. In fact, he anticipates that the neurologic deficits will likely worsen with time, as people who suffer a significant brain injury are likely to manifest the effects of aging much earlier than otherwise healthy individuals. He anticipates that she will require a lifelong follow up from specialists and rehabilitation and psychological therapy. Further, he anticipates that the poor motor function in her left arm and leg will predispose her to the development of osteoarthritis in her spine and limbs. He anticipates that as the years pass she will become less and less independent and ultimately will require increased help with all of her personal activities and the activities of daily living. In 1999, he concluded that she was "presently totally disabled from being employed." His belief then was that the situation was permanent. He also felt her disabilities would interfere with her ability to find a mate and enter into a marital relationship. If she did marry, she would be able to have children but the combination of her cognitive, motor and personality problems would interfere with her ability to care for children both physically and emotionally, and she would require a good deal of physical support and counselling.

[56] When he saw her in October of 2001 she had been in Seneca College for two years in the library technicians course. He found no real physical changes. Specifically, he found that she had no useful movement from the wrist down in her left arm and she had a partial left foot drop and was wearing a foot drop brace. Her level of conversation and understanding was entirely appropriate and coherent but she seemed to process things slowly and respond slowly. His view of the prognosis remained the same.

[57] He specifically concluded that she would likely succeed in eventually passing the library technicians course and could make a valuable contribution to any library that took her on. However, he did not feel that realistically she could become competitively employed. She would only be able to work for limited hours and would do so at an extremely limited pace compared to other qualified people. Therefore, he felt that she would only be able to obtain work with employers able to accept those disabling features, and that would only be work outside the competitive market place.

[58] Dr. James E. Sweeney, a clinical neuropsychologist, examined and tested Stephanie on December 10th and 11th, 2001. He observed her jerky gait and the partial paralysis of her upper left arm and hand. He noted that she speaks and responds slowly; she will have inappropriate emotional responses, such as laughing at a funeral home and not understanding why; she will mispronounce words strangely, and has a disassociation between motor acts and thinking which, for instance, prevents her from being able to take her own notes at lectures in school. He felt this same problem, which arose from her brain damage, would cause her difficulty in trying to do things like restacking the shelves in a library or sorting documents. Also, she would have problems in retrieving words and recalling verbal instructions. He felt she could not compete in the area of verbal communication and of course could not do anything with her left hand. She can, however, formulate concepts and can learn and remember non-verbal information. Her big problem is in simultaneous activity – doing and thinking at the same time. He felt this was a serious and frustrating limitation and in fact was a terrible affliction. He felt that she was normal

emotionally, when not under stress. He felt that it is possible she would deteriorate mentally more quickly than a normal person with aging and that she would have a higher risk of dementia. He felt that she could drive on routine routes if she was in no rush, but that if she was in complex traffic there would be a real risk. He felt that totally independent living was not likely to be successful for her because she would need psychological and social support and a predictable routine.

[59] He concluded that she was competitively unemployable in any job where rapid eye tracking, learning verbal information, simultaneous mental and physical activities, and verbal communication were needed. He could not think of a job for her, given those limitations and her accompanying physical problems. He was not sure if she would be able to complete her school program. He was sure that she would be capable of doing the typical jobs in a “sheltered work shop” situation – sorting nuts and bolts, etc. but also felt that she would be unable to stand doing such boring non-challenging tasks. He felt that she needed a job with a benevolent employer that was prepared to make allowances, but felt that this would not be found in any normal competitive field.

[60] Dr. William Franks testified for the plaintiff. He is a specialist in neurological rehabilitation, has dealt with some 3000 persons with head injuries and has testified all over Canada. I was very impressed with the depth of his knowledge and experience. He examined Stephanie in Sarnia on September 28, 1999. He felt that there was no question but that she had suffered a serious brain injury. He pointed out that with that history, further brain injury, from either external causes such as a blow on the head or an internal cause such as a stroke could be extremely serious. He did not know if she would have an increased predisposition to Alzheimer’s disease. He felt that she would have a 5 to 6 % chance of seizures, which would decrease as years went by, but that if she had one, she would be predisposed for another year or so thereafter. In his view, damage to the frontal lobes which control the emotions would be the cause of her inappropriate or reversed emotions, such as laughing in a funeral home. Her anger outbursts would come from lymptic damage deep in the brain. She has problems with lack of endurance and fatigue, common to brain-injured persons. The injured brain tires easily because it has to work harder and therefore she needs longer sleep. Also, she is intolerant of distractions. She can’t block out the sound of a TV or radio or talking and the difficulty of trying to concentrate in the presence of distractions can be very tiring. She has problems with her eye movements, affecting her reading. Her partial paralysis leads to synergetic motion patterns such as the swinging of her partial paralyzed leg. He felt that physiotherapy and training could further improve this but could not cure it. The imbalanced muscle actions will make her vulnerable to arthritis. Stephanie had exhibited some suicidal ideation since the accident which Dr. Franks described as common in brain-damaged individuals because their quality of life has been lowered. However, he indicated that actual suicide is rare. Her experience in losing her boyfriend and other friends, he also said, was common because of the personality changes, the inappropriate behaviours, and the rigid thinking patterns of brain-damaged individuals, who fail to see the points of view of others. All of this, he says, arises from frontal lobe dysfunction.

[61] In his opinion, she would not be able to function independently because of her deficits in areas of speech, lack of insight for making major decisions, physical limits, social skills problems and memory problems. He felt that all of those would all increase with age. He felt that she would need future physical rehabilitation for her arm and her leg and would need future assistance from a neuropsychologist in dealing with the failures she was sure to have in her life, which would affect her self-esteem. His view of her obtaining competitive employment was that with her series of deficits and disabilities it would be hard for her to get a job but even harder to keep it. She would be more likely to get a job below the level of her potential. In his opinion, unfortunately, persons with brain damage tend to lose the jobs that they do get for three reasons: 1) they are not productive because they work much more slowly, have a lack of endurance, and suffer from fatigue; 2) these persons, particularly those with frontal lobe injury, cannot sustain their motivation – they just can't handle a job after six months or so; and 3) these persons have personality problems which cause difficulties in their getting along with other employees.

[62] In cross-examination he agreed that her high school record from before the accident would indicate that it was more likely that she would have gone to community college than university, but he disagreed that the evidence of her cooking for herself at home or at college indicated she was capable of independent living. He pointed out that there is a great difference between being able to prepare a meal and having the executive functionality to plan a series of meals for, say, a week ahead and shop for all of the ingredients required for all of them.

[63] Stephanie testified at some length. She confirmed that she has no recollection whatever of the accident. She recalls being home, in a wheelchair, then using a four-legged cane and going to therapy at St. Joseph's Hospital. After she came home she went back to school, first to take an art class, then after Christmas a math course with a tutor, and english with her father's assistance, and a life skills course.

[64] She described her physical problems. First was her left leg, on which she needs a brace for her heel-toe problem. She describes her knee as "lazy" and she uses her hip to compensate for that. The brace on her lower leg causes calluses and her toes curl under. Her left arm problem, aside from the obvious spasticity, is that it contracts and she needs daily stretching of her arm and hand. At the moment a student does that for her and is paid by the insurer. She sees a massage therapist for her arms, legs and back. She says that her right leg compensates for the left and the right leg needs massage therapy too. She uses various aids — a tilt board for books, a cutting board, and a cane except when she is at home when she uses the walls to maintain her balance. She has scars, which bother her, on her left arm, on her hip, three on her belly (the residual effect of feeding tubes) and one on her throat from a tracheotomy.

[65] She needs much more sleep than would be normal for a young lady — she goes to bed at around 9 p.m. and is up at 6:30 or 7:00 in the morning. The past summer she worked at a health unit as a summer job, from 8 a.m. to 3:30 or 4:30 in the afternoon. She found this to be exhausting, although she worked at her own pace with an understanding supervisor who asked her to work at only one task at a time.

[66] She uses a computer, and can type on it, using a sort of one-handed touch-typing, but is not fast. She has and uses a palm pilot for all of her schedules, names and numbers, etc.. She says that her memory is all right if she has just one thing to recall, but she finds it difficult to remember a number of things. She can answer the telephone and write out a message but she cannot do both at the same time. She has to wait until a conversation is completed, then she is able to concentrate on writing and can make a note of any message.

[67] When in Toronto she goes to the North York YMCA to swim and to use an elliptical exercise machine. This gives her an opportunity to see people because she says she has no social life at Seneca. At the same time she goes to the YMCA during the day when it is not crowded and says that she hates having people staring or gawking at her. She swims 22 lengths at a time but describes her swimming as like that of a three-legged dog.

[68] She has modified her clothing to accommodate her physical limitations. She says, for instance that it is hard for her to put the two sides of a zipper together but once that is achieved she can pull it up or down. She does not use make-up because it is hard for her to get it on right. She needs help in putting on earrings. She will wear necklaces, but they are necklaces of beads strung on an elastic that she can pull over her head. She keeps her hair short so that she can manage it. With those sorts of accommodations, she can manage her own hygiene and personal care.

[69] She is in the library technician course at Seneca College. She got the idea of taking that course from a counsellor. She is taking a reduced course load but she is succeeding and is proud of it because she had never before seen herself as capable of becoming any sort of a professional. She suspects she will have another two years to go and has had to repeat some courses. She needs a note taker, because of her difficulty in trying to listen to someone and write at the same time. She requires and uses tutors and is given double time for examinations and can have her note taker in the examining room with her. She uses the note taker as someone to bounce ideas off. Reading is a problem with her. She uses a book holder and then uses a blank card, moving it down line by line as she reads to maintain her place. She makes notes and reads things over two or three times to get the information into her memory, otherwise by the time she gets to the end of an article or other material she has forgotten the beginning.

[70] She is used to Toronto now, or at least the area around her school and the school residence. She eats at the college. She says that she has no social life at Seneca but that she does see her sister Christine who is going to college at George Brown and her sister Alyssa who lives nearby. She has had six roommates so far at the school residence. She says that the roommates were not happy with her because they wanted to go to the pub or go shopping. She gets along better with East Indians as roommates because those students like her slow speech, which assists their limited English and they are there to learn, so stick to the books.

[71] She wants to be able to drive so that she can be independent. She notes that her parents do not baby her at home and says that she hates being babied. In Sarnia she had tried joining a group of brain-injured people but they were older, had different problems, and she didn't like it.

[72] She was cross-examined by Mr. Woodward and Mr. Adams. She told Mr. Woodward that she wants to be as normal as she can be but realizes that she has a number of limitations. She wants to get a job in the library field. She did a field placement in a library but that was in the technical division. In other words she was in a back area labelling books, etc.. She started at Seneca on a full-time basis, saying that no one could tell her that she couldn't do it full-time and she found out they were right; but she noted with some pride that she passed five of the six courses. She doesn't believe that she could work in a library in a public setting although she did work at the Discovery Museum, a very small museum in Sarnia, as a summer job full-time which included taking people on tours and she did well. She volunteered at the Brights Grove library and held a paid summer job at the health unit but said that things were slow there and that she could work at her own pace. She has volunteered with the Head Injury Association and she has cooked simple things and buys simple groceries. She can use e-mail and the internet and did internet searches in a career counselling office. She can travel on the TTC in Toronto and has taken the train from Toronto to Sarnia and back. She does simple banking, depositing money in her account and drawing it out, can use a debit machine and has some GICs. She has exercise machines at her home in Sarnia but prefers those at the YMCA there. Her family drives her to and from that YMCA.

[73] She told Mr. Adams that she can use the stairs, that she has a fridge and a microwave and an electric frying pan at Seneca and uses the laundry machines there. She has been assigned to a handicapped room at Seneca college, meaning it is wheelchair accessible, and had a roommate who was wheelchair bound. When she was first at Seneca she was going home every weekend but now she only goes home once a month or so.

[74] Her testimony was certainly fully understandable, and her answers were responsive to the questions asked. However, her speech was somewhat slurred, she was slow to respond to questions put to her, and when she did respond she spoke slowly and seemed to respond directly to the questions put, with little amplification. Her difficulty in walking and the paralysis of her left hand were obvious. Her left hand was curled up somewhat, and she would occasionally stretch out the fingers of the left hand with her right hand.

[75] The court heard from all of Stephanie's mother and father and her three sisters.

[76] Her oldest sister, Laura, now 26 and a teacher, told us of all three children playing soccer, swimming and playing piano together and of Stephanie being very athletic in soccer, volleyball, basketball and the swim team. She said that the family activities revolved around soccer.

[77] Laura recalled that the news of the accident and subsequent visits to the hospital in London were so upsetting for her that she could not do her university exams and received an exemption. However, she did not receive any medical or physical treatment.

[78] Laura described Stephanie as having a lot of friends before the accident but they are all gone now. She now finds it difficult speaking to Stephanie because she is deliberately avoiding subjects like what Stephanie might have done before the accident in comparison with her

abilities now. She describes Stephanie as slow to comprehend and respond but angry if you finish her sentences. She says that she is very moody and goes from laughing to swearing in seconds. She says that she cannot have a normal conversation with her because while Stephanie has great ideas they are very slow to come out and she focuses on only one thing at a time. She describes her writing as a scribble like a child. She spoke of Stephanie being in her wedding party and of Stephanie being upset and embarrassed over looking for a bridesmaid's dress that she could wear, and her problems with not being able to wear high heel shoes or carry a bouquet. Laura says that she is worried about her sister, particularly about her loss of potential for friends, a husband or a family.

[79] In cross-examination Mr. Woodward brought out that Laura is bilingual, and achieved that by going to summer language schools in Quebec, and that she would be away at a job or in Europe or in university or with a soccer team and so did not see much of Stephanie after her accident. Laura agreed with this but noted that she saw more of Stephanie than you might think because Stephanie would come to London with her parents on weekends, where Laura was going to university and she would see her there.

[80] Alyssa, the second oldest girl, is now a grade one teacher in the York region. She was closest in age to Stephanie, being a year apart. Because of this they were on the same athletic teams and had the same friends. She described Stephanie as actively dating all through high school.

[81] The night of Stephanie's accident, Alyssa took her younger sister Christine home while her mother went to London with Stephanie. Her mother lived in London for months while Alyssa stayed at home in Sarnia with Christine, holding things together. She found that very difficult and had problems in school and with her boyfriend, and ended up receiving psychological counselling. Now that she is married and living and working in Toronto she sees Stephanie regularly and is close to her.

[82] Alyssa tells us that it is hard to have a relationship with Stephanie because she doesn't understand things like marriage and doesn't have relationships with people – she has no friends. She doesn't handle situations well, and things like Alyssa's own wedding or her buying a house with her husband seemed like concepts that Stephanie could not grasp. She recalled Stephanie being upset regarding the dress she was to wear at Alyssa's wedding and disappearing for an hour on the wedding day. Alyssa said that she has to speak to her about simple things like her school, and that she and the other family members avoid getting Stephanie agitated or frustrated. The whole family therefore has learned to speak to her diffidently, and she fears that Stephanie feels that they are all only around because they are family. She knows that Stephanie would like to work and not sit around doing nothing and would like to live alone, but knows there are things that she just can't do. She is very concerned over Stephanie's future and hopes that she can have a life with a husband and friends to help her. She says that if Stephanie cannot have that she will include her in her circle of friends.

[83] Stephanie's third sister Christine, now 20 and in second year at George Brown College in Toronto, also testified. Christine shared a room with Stephanie until grade 9 and they had a lot of "sister talk" together. She described Stephanie as funny, friendly, outgoing, social, laid back and fun to be around. She says her relationship with Stephanie now is hot or cold – they can get along well or fight. She says Stephanie is upset at Christine's social life because it is the sort of thing Stephanie used to have. Stephanie, she says, has to have things her way or no way and will blow up over the tiniest things. She doesn't think about hurting others or why she is arguing. She has very quick mood changes – if one word upsets her, her hand goes up as if to hit you. She says that Stephanie used to play the older sister role with her and is bothered that she can't do that now.

[84] In Toronto she makes dates to go out with Stephanie to eat or to go to a movie. Stephanie had been a friend of most of the students in the high school but now has only one or two friends left in Sarnia who she sees infrequently. What bothers Stephanie is that Christine will sometimes see the old friends of Stephanie. What particularly bothers her is that those friends treat Stephanie as if she is handicapped, which really upsets her.

[85] She recalls Stephanie's suicide attempt, when she had left a note and gone down to the river not wanting to live, but says she has not seen much of that sort of thinking recently. However, she describes Stephanie as deprecating herself and repeated her reference to swimming like a three-legged dog. Christine also received some treatment from a counsellor, principally for nightmares she had after the accident and said that those treatments had been of help to her.

[86] Rosemary Walker, Stephanie's mother, testified. She is a nurse by profession, who had been at St. Joseph's Hospital in Sarnia and then had worked as an industrial nurse at Suncor. She confirmed what we had heard before, that Stephanie had been very active in sports and socially before her accident.

[87] She went in the ambulance with Stephanie to London and was with her daily for some six months, arriving at the hospital at 7 or 8 a.m. and staying until 9 or 11 p.m. At first she stayed with her husband's sister who lived in London and then later she commuted back and forth from Sarnia. Stephanie came home in the fall and they set up a bed for her on the main floor of the house. Stephanie's goal, which she succeeded in reaching, was to be able to get up the stairs to the second floor of the house by Christmas. The family got Stephanie started at rehabilitation at St. Joseph's Hospital in mid-November, attending for half days. In February they enrolled Stephanie in an art class at the high school where her father taught. Later she was enrolled in classes in math (with a tutor), english and life skills – not for the academic content, but to provide a variety of stimulations, as an aid to her recovery. The family was aware that recovery in head injury cases tends to plateau within a relatively short time, and the thought was to get in as much as possible before that occurred.

[88] Mrs. Walker was involved in the vocational testing of her daughter in the summer of 1998 and in the decision to go to Seneca College, including management meetings there as to how this would all be supported, and driving to Toronto every weekend. She was aware of, and

supportive of, her daughter in the various problems with roommates and was very aware that the academic program at Seneca was increasing in complexity, so that the current year would be very difficult for her daughter.

[89] Mr. Woodward brought out, in cross-examination, that Stephanie is no longer doing physiotherapy but in Mrs. Walker's view she still needs follow-up and advice on exercises and arm stretching. Stephanie can take care of her personal care, of her room, can prepare light meals, get simple groceries and do her laundry. She has gradually stopped coming home each weekend and she is now not receiving any medical treatment nor is any anticipated, except dealing with calluses from brace. She agreed that Stephanie's level of fatigue depended on what was happening to her and agreed that Stephanie had become more mature and independent. Mr. Adams obtained confirmation from her that in December of 1997 Stephanie could access the upstairs of the family home.

[90] Gary Walker, Stephanie's father, testified to being a teacher at Sarnia Northern Collegiate from 1970 to his retirement two years ago and to have lived in Bright's Grove for 18 years, two doors away from the grade school. He and his wife had involved the four girls in music, Guides, athletics and, particularly, soccer. All four girls were good at soccer but Stephanie was the best. The family would go to seven soccer tournaments in the summer and also camping trips, etc., always together. They were a very tight family.

[91] Pre-accident he had expected Stephanie would do post-secondary education of some kind. He spoke to her of going to high school for another year to get advanced credits and he had thought of her getting an athletic scholarship to a university in the United States but nothing was finalized before the accident. Before the accident she had many friends and a very active social life.

[92] After the accident, it was his thought to get her involved in an art class at his high school, to allow her to express her feelings. The class was close to his own classroom so that he could come to her assistance if needed. After she successfully attended that class he got her enrolled in others, primarily for rehabilitation in a familiar setting. The idea of the library technician's course came from Dr. Smith's vocational assessment. It was explained that she would require lots of support and that she would have difficulties in attending a college, but neither he nor Stephanie were given much detail in advance. In the fall of 1999 on every weekend his wife would drive to Toronto get Stephanie and bring her home, then he would drive her back to Toronto and return himself.

[93] He spoke of the problem of Stephanie's former friends who were not calling her. Stephanie in turn would not call them. There was a period of serious depression, but he feels that she is now substantially improved. He also feels that college helps her self-esteem. He feels she wants to leave the nest and be independent and he is encouraging that, but he and the family are prepared to provide a safety net for her. Specifically, he is afraid of her being taken advantage of.

[94] He explained something of the situation regarding her driver's license. Apparently she had a temporary permit but it expired and his insurer refused to insure her as a driver of the family vehicles. That was really not followed up at all because she was going to Toronto to go to school and neither he nor she wanted her to try to drive in Toronto.

[95] He confirmed that Stephanie is now more fatigued than she was before her accident and sleeps for some two hours longer each night than she used to.

[96] In response to cross-examination questions from Mr. Woodward he confirmed that neither he nor his wife had received any counselling, but felt he should have had some. He made no effort to find another automobile insurer that would cover Stephanie. He confirmed that the taxi bills for Stephanie are always less than \$100 per month. His expectation is that Stephanie will complete her diploma at Seneca at some time. He cannot indicate how long it might take. He hopes that she will get a job but appreciates the reality is that that is very difficult and requires a benevolent employer.

[97] Credibility was not put in issue with any of these witnesses, and while some additional details were brought out, none were shaken in cross-examination. All of them, including Stephanie herself, provided the court with different aspects of, and further details on, what was essentially the same thing – that Stephanie had suffered a catastrophic injury which has left her with severe and crippling physical problems, as well as cognitive, memory, and emotional problems and deficits. Although she may learn further coping mechanisms, and further adjust to her plight, there is no reason to hope or expect any improvement in her deficits. To the contrary, the medical opinion is that her problems will increase with age. Her social and athletic lives as she knew them before the accident are gone, never to return. The normal expectations of her and her family before the accident, that she would progress to higher education, to a career and to a normal family life with a spouse and children have been shattered.

[98] It is obvious that a dollar award of general damages cannot hope to provide complete compensation for these losses. In a case such as this, consideration of the general damage limit imposed by the trilogy in the Supreme Court, and the concept of "solace" therein discussed becomes relevant and appropriate.

GENERAL DAMAGES – STEPHANIE

[99] In my view, after reconsidering the judgments in the trilogy and the summaries of factual situations and awards in the many cases since the trilogy, collected under the heading of "most severe injuries" in Goldsmith, *Damages for Personal Injury and Death* – Consolidated Tables – Looseleaf, Carswell, I conclude that the totality of the injuries, deficits and disabilities suffered by Stephanie, together all come close to, but do not equal, the worst possible scenarios. My decision is that in this case a fair and reasonable assessment of non-pecuniary damages is \$250,000.

EMPLOYABILITY

[100] A serious issue in this case was the potential for employment, and employment income, of Stephanie. The position taken by Mr. Fleck was that, on the balance of probabilities, Stephanie would be unable to obtain or maintain competitive employment. The position of Mr. Woodward was that Stephanie may not be able to work in a full-time position, but that she should be able to work part-time, earning, as his witness Ms. Pollard suggested, something in the order of \$8.00 to \$14.00 per hour.

[101] As previously discussed, all of Dr. Goldstein, Dr. Sweeney, and Dr. Franks were of the view that she was not competitively employable. While Dr. Goldstein felt that it would be good for her to have work, he felt it would have to be as a volunteer or at a low wage. Dr. Sweeney could not think of a job for her, with her multiple disabilities. Dr. Franks felt that it would be hard for her to get a job and even harder to keep it.

[102] The defence also called a neuro-psychologist, Dr. W. Gary Snow, who has a great deal of experience in brain injury cases. He interviewed and tested Stephanie in December of 2001. He concurred that she had suffered a severe brain injury. His testing produced generally the same results as the testing by Dr. Sweeney. He, of course, noted her paralysis, but also noted an impairment in naming things and in verbal fluency, difficulties in expressing herself, in reading a paragraph and slowness in learning. He noted that she had little or no impairment in non-verbal problem solving. He did not think that she had suffered any truly cognitive decline. He noted her difficulty in multitasking and felt that if she was given too much information at once she would find it overwhelming. He agreed she would fatigue easily.

[103] The best he could say of her potential for competitive employment was that he was not sure that she could not make it. He came to that view despite her deficits because of what he observed of her persistence, drive, and desire for independence. He felt that if she was in a work situation she would be diligent and conscientious but that her slowness, problems in comprehending and in expressing herself would count against her. He did not comment on the short-term memory problems that Stephanie and other observers had noted, nor did he refer to the comments of Dr. Franks about the problems of persons with brain damage keeping a job if they could find one.

[104] Mr. Fleck called Joel Kumove, a rehabilitation counsellor from Toronto. Mr. Kumove interviewed Stephanie in June of 2002 and also had a long interview with Dr. Arnott, the head of the library technicians' program at Seneca College. Mr. Kumove has had previous experience with clients with brain injuries. Unfortunately, he told us that of 100 or so of these clients he successfully placed only two of them, both with understanding previous employers.

[105] His conclusion was that Stephanie functions below the standard for any competitive employment. He gave three reasons for this opinion: first, her communication was very slow and laboured; second, she struggles to comprehend and learn new information even in the program at Seneca which accommodates her; and third, her ambulation and manual capacity and skills are limited. He noted that her level of effort is extremely high but also noted that she was doing fairly poorly in a highly supported school setting.

[106] In cross-examination by Mr. Woodward he admitted that he formed a preliminary opinion from the medical reports which he had read, and that he had not checked various libraries regarding their actual work requirements, nor had he reviewed her placement in a library. However, he responded that, while motivation matters, if the physical, mental and personal skills are absent, a job cannot be obtained, and a job coach could not fill in for her. When asked about the possibility of part-time work he responded by asking why an employer would pay for three hours to get one hour of production. He was not aware that she had held a paying summer job at the Health Unit but advised that most summer jobs are routine, boring things which are saved up for students to do in the summer time.

[107] Mr. Fleck also called Corrine McAuley, a psycho-vocational consultant who interviewed Stephanie with Joel Kumove. She noted that Stephanie's speech was slow and sometimes slurred, with difficulty in finding the right words. She felt that Stephanie's recall, information processing, and conceptualizing were all among the worst she had seen. She noted a tendency of Stephanie to get frustrated and said that questions to her had to be close-ended and concrete. A test of innate intelligence showed that Stephanie had been born with a normal intellectual ability for college but a standard I.Q. test shows her having a low average now, below college level. In her view this indicates that she now cannot access the intelligence she was born with. Her speed and accuracy on clerical tests was at the tenth percentile, below the average and not competitive in any clerical job.

[108] Ms. McAuley's conclusions were that her cognitive, physical and emotional problems leave her disadvantaged. Her memory and conceptualizing limits are a problem. She cannot multi-task and cannot pass a typing test, a common requirement for all clerical work. Also, she felt that Stephanie's self-esteem was low, that she was self-conscious, she was not adaptable, could not work under pressure and had a lack of stamina. She discussed Stephanie's work history since the accident, and noted that at the Discovery House Museum she had assistance and was accommodated; at a summer job at the University of Western Ontario her aunt assisted her, and she worked in an isolated situation. Her workplace evaluation showed her to be slow and lacking independence. On the two-week work placement at the London Public Library she was kept away from answering the phone or from dealing with the public. Ms. McAuley's opinion was that Stephanie could work as a volunteer, away from the front lines, doing repetitive jobs, and that would be good for her and for her self-esteem, but felt that she could not obtain and hold a competitive job position.

[109] Under cross-examination by Mr. Woodward she agreed that Stephanie had been placed on the reference desk at the London Public Library but noted that it was only for two-hour stretches. She was asked about the possibility of libraries accommodating Stephanie and responded that libraries generally are underfunded and understaffed, and so have no room for an unproductive worker. She felt that Stephanie could not properly train for other types of employment because her present low I.Q. level would not qualify her for community college courses.

[110] The defence called Ms. Yvonne Pollard, a senior rehabilitation consultant with Disability Management Associates Inc.. She was called primarily to critique the rehabilitation reports of the expert called by the plaintiff, but commented on the possibility of competitive employment for Stephanie. She felt that Stephanie would require an appropriate job match, an educated employer, and support in getting and initially holding down a job, but felt that she was employable in a competitive capacity. She did not see Stephanie as being able to work full-time, because of the time Stephanie would need to get to and from work, plus the time she would need to fit in a fitness regime and take care of other things, but felt that if she was placed she would be able to sustain part-time employment. She spoke of the success of her own company in placing severely disabled people in workplaces and of a paper she did on assisting acquired brain injury patients to get competitive employment.

[111] From the reports she reviewed, she felt that the initial personality problems of Stephanie had been steadily improving, and that she had matured and had developed a social sensitivity. She noted that she appeared to be very tenacious and very determined. She has obvious physical impairments and mental and personality impairments but noted that she has executive skills within the parameters of her peers and ability to concentrate which would be very important. Her initiative in getting summer jobs and her unhappiness if unemployed would both be very important for her.

[112] She said that her own firm had been successful in searching out employers who would be prepared to take disabled people in on job trials, at no or low cost to them, then match prospective employees to jobs available and put them on the job with a job coach until they were functioning at the tasks. This, she said, often resulted in employment, and she felt that approach would be successful with Stephanie. She felt that Stephanie could fit into a job doing routine administrative or clerical work, with no typing, such as perhaps directing people as a receptionist, on a part-time basis. She felt that would pay something between \$8.00 to \$14.00 per hour.

[113] Stephanie's own present plan is to continue on in the library technicians course, with hopes of passing the course and finding work in that field. Her testimony as to her difficulties with this course, and as to her successes to date and the support she has been receiving, notably both a note taker and a tutor, has been referred to *supra*.

[114] Mr. Fleck called Dr. Davidson-Arnott to testify. She is the program coordinator at Seneca College for the library technicians course. She has been a librarian herself since 1970 including some 16 years as the chief librarian at Centennial College, where she oversaw a staff of 40. The library technicians course at Seneca accommodates some 80 full-time students.

[115] She described a library technician as occupying a place between a librarian and a clerk. The library technician does not require the theoretical or management background of a librarian but would need to be able to supervise and direct a clerk. The position requires some physical ability, broad general knowledge, an ability to analyze materials, particularly for

information searching and cataloguing purposes, and people skills, as clients of libraries are often demanding.

[116] The library technicians course at Seneca College starts by teaching the clerical skills needed for library work, because library technicians, especially new graduates, often have to do these clerical tasks, and because the technician is expected to be able to train and supervise a clerk. After the clerical aspects of library work have been covered, the course progresses to more complex material such as cataloguing, database searching and subject searching for information. The course progresses upwards in difficulty and she said that Stephanie would find the fourth semester to be very tough. Not only is the content complex at that level, but there are no texts, so the students have to attend all the lectures and obtain the needed information in the class setting.

[117] In her time at Seneca College Dr. Arnott told us there had been only one other student who had brain and physical impairments. She described that student as more disabled than Stephanie and added that the other student had little support. That other student dropped out.

[118] In addition to the increasing academic complexity – and Stephanie had already had to repeat some courses – graduation in the program requires successful completion of three job placements for two weeks each in a public, an academic, and a specialized library. Stephanie had done a placement with the London Public Library. Before the placement Dr. Arnott spoke to the librarian at length about Stephanie's disabilities. The report received back afterwards indicated that the placement was successful, but the report also noted that with many tasks, she could perform only part of the needed work and was slow. She was less productive than other students. She was allowed to sit at the reference desk but was just assisting the person answering questions from the public. Principally she was doing "processing" which meant putting labels on books and other materials, and it was found that she could not properly affix the labels to envelopes or to films.

[119] If Stephanie eventually successfully completed the library technicians course she would then be competing with the other graduates of the program for the limited available jobs. Faced with that competition, Dr. Arnott did not feel that Stephanie could get a position in a library.

[120] If she did succeed, she would be looking at a job where the starting salary is \$30,000 to \$35,000, rising to the \$40,000 range. Dr. Arnott advises her students not to accept less than \$30,000 to start in Toronto. In the job market, the large libraries have more specialized staffs, so it might theoretically be easier to find a position in such a library that could accommodate Stephanie's disabilities. However, in those libraries the work pressure tends to be higher and they tend to hire the best graduates. In a small library, the pace might be less demanding, but the staff would be expected to cover a wide variety of tasks.

[121] In cross-examination Dr. Arnott indicated that Stephanie's problems in working in a library would include her physical limitations, her limitations on learning quickly, including difficulty in responding quickly to inquiries, which would prevent her from working effectively on the telephone, and could well also prevent her from working on a circulation desk processing book borrowers. She felt that Stephanie would acquire some transferable skills from the course which could be used, for instance, as an archivist or in doing database management.

[122] In summary, all of Dr. Goldstein, Dr. Sweeney and Dr. Franks, called by the plaintiff, gave opinions that Stephanie would not be competitively employable. Dr. Snow, the defence psychologist, could at best say that "...he was not sure that she could not make it." He based that uncertainty largely on his observations of Stephanie's persistence, drive and desire for independence – subjective findings which he felt might balance the objective findings of his interview and tests. Mr. Kumove and Ms. McCauley, the rehabilitation experts called by the plaintiff both concluded that Stephanie could not obtain and hold a competitive job position. Ms. Pollard, the rehabilitation consultant called by the defence, spoke of the success of her firm in placing disabled people and opined that Stephanie could be placed in a competitive part-time clerical or administrative job. She did not have the advantage of interviewing or testing Stephanie. Her information was limited to the reports she read. In my view, her opinion is based upon the admitted success that her company has had in introducing a new job placement program for disabled people in a limited geographical area. Whether that initial success can be sustained, and broadened out geographically, very much remains to be seen. At this point in time I am more impressed by the broader experience of Mr. Kumove and Ms. McAuley. I was even more impressed by the depth of experience of Dr. Franks, in dealing with thousands of brain injury patients. He explained not only the difficulties of these persons in obtaining employment but also something none of the others mentioned – a difficulty, apparently inherent in brain injury, of maintaining the persistence and drive, as Dr. Snow called it, over a period of time. The sad conclusion of Dr. Franks was that if these patients succeed in getting a job they tend to lose it after a few months.

[123] I conclude, on the balance of probabilities, (beyond a “real and substantial risk”) that Stephanie will be unable to obtain competitive employment, or if she should happen to find such a job, to maintain it. However, the balance of probabilities would favour Stephanie earning money during her lifetime, either from non-competitive employment or occasional work in the competitive field, which should be treated as a contingency in the calculation of a future wage loss figure.

FUTURE LOST INCOME

[124] In this area, there was agreement that the grievous injuries Stephanie suffered would not affect her life expectancy. There was therefore no problem with "lost years". Mr. Fleck retained Mr. Ian Wollach of Rich Rotstein, Chartered Accountants, in Toronto to prepare a report of the present value of future lost earnings. Mr. Woodward retained Peter Ross of Forecs Ltd. to critique the Rich Rotstein report and then to do an independent report. There was no question raised as to the qualifications of these two experts to prepare this type of report, or the

accuracy of the arithmetical calculations carried out to produce the results presented. The difficulties relate primarily to the presumptions and assumptions upon which the reports are based.

[125] The position of Mr. Woodward was that the most likely future for Stephanie would have been to have taken a course in a community college and have entered the workforce as a college graduate. Stephanie had not pursued the OAC program in high school and therefore was entitled to graduate holding only a grade 12 diploma, which would not entitle her, on a normal application, to admission to an Ontario university. Mr. Fleck's position was that, nevertheless, there was a clear possibility of her obtaining an athletic scholarship to an American university, and alternately her father was indicating it had still not been settled as to whether she would go back to high school and take OAC courses.

[126] Further, Trisha Slipacoff, a teacher since 1976 and the head of the guidance program at a Sarnia high school with 1350 students, with a guidance office of 4 counsellors, testified as to her knowledge of students in Sarnia obtaining athletic scholarships, going to American universities and coming back and qualifying as teachers in Ontario, some of them at Northern High School where she was. Stephanie's own marks in the general program at high school had shown her to be a strong student, above the average. She agreed that normally for university entrance, six OAC courses were required, but said that as an alternative Stephanie could have gone to a community college, and after receiving a diploma could then have applied to a university she spoke of several articulation agreements existing between community colleges and universities, whereby community college courses are accepted for credit purposes by a university. She spoke particularly of students enrolling in The Early Childhood Education course at community college, then transferring to Brock University for an undergraduate degree in child studies followed by a teaching degree. Another possibility with which she was familiar was Athabasca University, which operates a number of distance learning programs leading to a degree, without an OAC entrance requirement.

[127] The assessment of future pecuniary loss is governed by the legal principles laid out by Doherty J.A. in *Graham v. Rourke* (1990), 75 O.R. (2d) 622 at 634. He commented that the assessment of future pecuniary loss is of necessity a somewhat speculative exercise, as whether the future loss would be suffered and if so for how much is not subject to proof or disproof in the sense that facts relating to events that have occurred in the past can be proved or disproved. He therefore states the principle as follows:

"A plaintiff who seeks compensation for future pecuniary loss need not prove on a balance of probabilities that her future earning capacity will be lost or diminished or that she will require future care because of the wrong done to her. If the plaintiff establishes a real and substantial risk of future pecuniary loss, she is entitled to compensation..."

Doherty J.A. goes on to add that establishing a real and substantial risk of future pecuniary loss does not necessarily entitle the plaintiff to the full measure of that potential loss. What is to be taken into account, once a real and substantial risk of pecuniary loss has been established, are the contingencies both for and against. He quotes from the decision of Dickson J. in *Andrews v. Grand & Toy Alberta Ltd.* [1978] 2 S.C.R. 229, to the effect that projected averages of income generally have included already a number of the contingencies and ends with the sentence:

"Clearly the percentage deduction which is proper will depend on the facts of the individual case, particularly the nature of the plaintiff's occupation, but generally it will be small..."

[128] I am dealing here with a situation in which there is a surprising lack of helpful information. Stephanie was fast approaching her grade 12 graduation when this accident occurred. However, no firm plans had been made at that point as to what she was going to do after graduation. We know nothing about any future plans she might have had, or what she might then have thought of doing, for the rest of her life. For that matter we do not know how she came to be in the general program rather than in the OAC program at high school. Her father could simply tell us that a potential for an American scholarship was recognized, and that he was thinking of Stephanie going back to high school the next year to take OAC courses, but said that nothing had been determined. Stephanie herself could not tell us of any fixed plans that she may have had at that time.

[129] What I think is clear is that she had not, at that point, made any definite plan to stop her education after grade 12, or to enroll in any specific program at a community college. We do know that she had above-average marks in high school, that she was an outstanding athlete, better, according to her coach, than other athletes who had been offered athletic scholarships to American universities, that she was outgoing, gregarious and sociable, with many friends, and that she was tenacious, a characteristic she retained after her injury. Her two older sisters went on to university, both were on athletic teams while there, and both became teachers. Ms. Slipacoff described three alternate ways in which Stephanie could end up with a university degree, and her father was at the point of advocating a fourth – a return to high school for OAC courses. It seems to me, based on the background information available, that Stephanie would have been attracted to university programs in human kinetics or in teaching, with a physical education specialty. My conclusion is that there was a real and substantial possibility, had the accident not intervened, of Stephanie having gone on in school and having earned a university degree. However, given her lack of the needed OAC courses, it seems more probable than not that it would have taken her an extra year, over and above the one year Mr. Wollach has provided for in his tables, for her to obtain the necessary prerequisites to a university education.

[130] There is of course also the possibility that she would have simply gone to community college and then entered the work force. Within that area of possibility, it would also be quite possible that she would have later decided to upgrade her education by going to university, either full-time or part-time, and entering as a mature student, not needing academic pre-requirements. In my view, it is better to deal with those possibilities as contingencies to be

applied to what I regard as the most likely possibility, namely, proceeding directly towards a university education. Given her family background, I dismiss the option of simply going out to work after grade 12 as unlikely.

[131] Mr. Wollach and Mr. Ross both presented calculations of the present value of projected income losses for Stephanie, presuming a university education, forward to age 65. Mr. Wollach's number is \$1,690,250. The comparable figure for Mr. Ross is \$1,070,694. One of the principal reasons for the difference is that Mr. Wollach uses as his base, the average income of all university graduates which he notes at \$65,769. Mr. Ross did his calculations on five-year age groupings, with different average earnings in each grouping, but notes that the average to age 65 of the groups he used is \$48,346. The difference is due to the fact that Mr. Ross chose to use the figures for female university graduates, rather than all university graduates.

[132] The use of gender based statistics has been the subject of critical comment in a number of court decisions. In *Tucker v. Asleson* [1991] B.C.J. No. 954 Finch J. (as he then was) in assessing the quantum of future wage loss for an eight year old girl who suffered a serious brain injury had this to say at p. 42:

"The basic question in this case is whether the measure of the plaintiff's capacity to earn income should be based upon statistics for her sex, or whether the measure of her capacity is, as her counsel contends, the same as for a male person.

I accept, as a starting point, that the measure of the plaintiff's earning capacity should not be limited by statistics based upon her sex. ... in Canada, no educational or vocational opportunities were excluded to her. ...

I accept the assertion advanced on the plaintiff's behalf that the measure of her lost capacity to earn income is the equivalent of the average university educated B.C. male ... "

[133] In *Terracciano v. Etheridge* [1997] B.C.J. No. 1051, Saunders J. said, at p. 14, in assessing damages for a female paraplegic that:

" In this case the statistics of average female earnings were pressed on the court by the defendants as the best predictor of Ms. Terracciano's future at the time of the injury.

Apart from the fact that these statistics perpetuate historical inequality between men and women in average earning ability, and that they have hidden in them serious discounts for lower and sporadic participation in the labour market which are duplicated by many of the negative contingencies used by economists to massage the numbers downward, such statistics may provide little

assistance in predicting the future of a particular female plaintiff:

...

Indeed it may be as inappropriately discriminatory to discount an award solely on statistics framed on gender as it would be to discount an award on consideration of race or ethnic origin. I am doubtful of the propriety, today, of this court basing an award of damages on a class characteristic such as gender, ..."

[134] This issue came before Mr. Justice Shaughnessy of our court in *Gray v. Macklin* [2000] O.J. No. 4603, in assessing future wage losses for a 16 year old girl who suffered a traumatic brain injury. In his decision, the above cases, and others, were considered. He had evidence before him on the rapid narrowing of the historical differential in men's and women's average income and of parity existing now in fields such as teaching and engineering. In paragraph 197, Shaughnessy J. found that there had been sufficient evidence called to indicate that wage parity would occur in the future, but just when was not known. He then considered using the male tables plus a negative contingency, or the female tables plus a positive contingency. He chose the former, as the "...fairest approach in the circumstances consistent with the evidence." He went on to say:

"...I am mindful that it is inappropriate for an assessment of damages to reflect historic wage inequities. The courts must ensure as much as possible that the appropriate weight is given to societal trends in the labour market in order that the future loss of income properly reflects future circumstances. The court must embrace pay equity, given our fundamental right to equality as entrenched in the constitution... ."

[135] In my view, the use of statistical figures which reflect the entire population, without division as to gender, as Rich Rotstein has done, avoids the problem of having two separate tables and then having to choose between them and apply what seem like appropriate adjustments. The choice of the general average figures for university graduates seems especially appropriate here where the court is attempting to make a forecast stretching many years into the future, and where a couple of the suggested future professions, barring the accident, are teaching in which pay equity has been achieved, and human kinetics, where a good deal of the employment is with government or government supported institutions, where pay equity is mandated.

[136] I find that the Rich Rotstein approach to future wage loss is the most reasonable one to use in the circumstances of this case.

[137] Mr. Ross, in his calculations, made allowances for labour market contingencies for part-time and full-time unemployment which, on the figures he was using worked out to 20.5%, and added to the figure thus reduced, 12.1% for employee benefits. Mr. Wollach, in his

report, considered the negative contingencies for lay-off, unemployment, forced early retirement and disability, but noted that these are mitigated by statutory employee benefits and non-statutory benefits including disability and pension plans. He considered positive contingencies such as promotion, salary increases beyond contemplated levels, and the possibility of earned income beyond age 65. Further, he considered productivity improvements, noting a real wage growth in Canada since 1920 of over 1% per annum, and future forecasts of wage growth at 0.88% per annum for the years 2005-2014. He noted that a study had shown the statutory employee benefits on average amount to 9.3%, and non-statutory employee benefits, other than vacation and holiday pay, average 11.5% of payroll costs. Those two numbers add to 20.8%, much different from the 12.1% used by Mr. Ross. The approach taken by Rich Rotstein was simply to assume that the positive contingencies plus the value of employee benefits were equal to the negative contingency risks. In Mr. Wollach's evidence before the court, he specifically adopted this approach as what he in his considered opinion felt was the most reasonable approach to use in this case.

[138] I accept the evidence of Mr. Wollach and his suggested approach. In my view it accepts the obvious fact that there are a number of variables, among various occupations, employers etc, in addition to the variables personal to each employee. It is obvious that the annual figure, as well as the forecast figure for lifetime earnings, has to be, despite the mathematical calculations used, still only an estimate put forth for assistance in assessing a future loss.

[139] I therefore accept, as the most reasonable in the circumstances, the Rich Rotstein calculation of present value of future lost income of \$1,690,250 as the best available professional estimate of future loss, based on the parameters suggested.

[140] I have already indicated that in my view, that figure needs to be adjusted to show graduation from university as occurring a year later than was used in the assumptions.

[141] I must deduct a negative contingency factor on account of the other possibility which I found to be reasonable – that Stephanie would have gone to community college and then not, either immediately or sometime thereafter, gone to university. Mr. Ross had done calculations, based upon average lifetime earnings of Ontario female community college graduates. Although he provided details by age group leading to a lifetime average of \$33,858, that apparently is for college students who have taken a one-year course, because he indicates that the earnings for two-year graduates are 4.4% higher or \$35,360 and for three-year graduates they are 14.5% higher or \$38,789. Using the figure he developed for lifetime earnings, with adjustments only for mortality, and therefore comparable to Mr. Wollach's calculations, he arrived at \$875,629. If that was increased by 4.4% to represent a two-year course (which I would think most likely for Stephanie) I arrive at \$914,157. After due consideration, I have concluded that the fairest and most appropriate contingency deduction to make from the lifetime earnings for a university graduate figure, which I concluded was the most likely of the reasonable possibilities, to account for this other reasonable possibility, is 10%.

[142] I must also make provision for the contingency of Stephanie earning income during the balance of her lifetime, despite her disabilities. In the evidence there had been repeated reference to volunteer work, which of course would not count. Ms. Pollard had raised the possibility that Stephanie could, with massive support, do clerical type work (not requiring clerical skills such as typing) on a part-time basis at or near minimum wage. Bearing that in mind, and Stephanie's ability to find and keep part-time summer jobs after her injuries, but also bearing in mind her many disabilities, the fatigue she reported when working in the summer, and Dr. Frank's opinion on the difficulties of brain-damaged persons maintaining enthusiasm and keeping jobs, I conclude that the fairest forecast I could make, based on all the evidence I heard, is that it would be reasonably possible for her to find employment for about one-third of the time, or say 600 hours per year, at minimum wage of, say, \$7.00 to, say, age 60. Mr. Wollach provided a present value multiplier of 23.98 for an income stream to that age. Multiplying those numbers together gives me a figure just over \$100,000. I conclude that \$100,000 is a fair amount to deduct as a contingency against future earnings by Stephanie during her lifetime.

[143] Applied to the present future loss figure presented of \$1,690,250, I find the 10% contingency reduction takes that down to \$1,521,225. The further \$100,000 as deduction above indicated reduces that figure to \$1,421,225. I await the actuarial re-calculation, before arriving at a conclusion and definitive finding as to the award for future wage loss.

PAST WAGE LOSS

[144] Mr. Ross did no calculation of past wage loss, based on Stephanie going to university. He did a calculation resulting in a figure of \$67,243, on the basis of her going to a community college for a year and then joining the work force. Mr. Wollach arrived at a figure for past loss of income to September 9, 2002 of \$26,457, basing the calculations on assumptions that she would have worked an average of 10 hours per week during the school year and 12 weeks full-time in the summer, all hours paid at minimum wage of \$6.85 per hour. I find those assumptions to be fair and reasonable based on Stephanie's past history. Due to my above finding, that calculation will now have to be extended to encompass a further year. Also, in fairness, to give equal recognition to the secondary reasonable assumption that Stephanie would have not gone to university, a positive contingency of 10% should be applied to the new figure for past wage loss.

FUTURE CARE COSTS

[145] To its credit, Wawanesa Insurance Company responded immediately to the news of this catastrophic injury. Susan Weymouth, a registered nurse and a senior rehabilitation consultant with Nancy Halston & Associates, was appointed as the case manager for Stephanie. Ms. Weymouth deals with catastrophic injuries to the spine and brain and has handled 75 or so brain injury cases. Her first contact was at the hospital on May 22, 1997 and she has been handling the support and rehabilitation aspects of Stephanie's case since then. It has been her job to provide direct support, advice and assistance to Stephanie and her family and also to arrange for a large support team, including physiotherapists, medical aids suppliers, speech therapists,

vocational consultants, social workers, and through the office of her firm in Toronto, tutors, note takers, and a myriad of other support persons. Generally the approach has been to leave no stone unturned in efforts to help Stephanie recover as much function as possible, adjust to her new limitations, and function to the utmost potential within those limitations.

[146] In the course of this she has come to know Stephanie very well. She notes in her series of reports, and testified before us as to the changes in Stephanie after her accident, from her initial lack of insight into her deficits and limitations through her frustrations, angry outbursts, and her periods of egocentricity, manipulation, dismissiveness of others and profanity, towards her present increased maturity and independence, moving towards self-reliance. She notes that perseverance is one of her strongest attributes but that she still needs and will continue to need support and accommodation to succeed.

[147] The future cost of all this, from the cost of replacement rubber cane tips through the cost of full-time home support workers for the balance of Stephanie's projected lifetime, have been predicted and assessed in various reports which have been reviewed and critiqued by the defence. A considerable amount of very detailed evidence was heard and considered in this area.

[148] One sort of very detailed evidence to which I was exposed was assessments of attendant care needs. These assessments are required under the current no fault insurance benefit schemes and include the completion, with supporting opinions, of an incredibly detailed schedule of how much assistance a disabled person needs and for what. An example is that Stephanie has a problem with putting on earrings, due to her paralyzed hand. An assessor has carefully calculated that Stephanie would need the services of an attendant for one minute per day to assist her in putting on and taking off jewelry. While that one minute, and many other like calculations are duly entered in the form, no provision is made for the plain and obvious fact that the companies that provide attendants charge for a minimum of four hours for the services provided. These types of reports are, however, helpful in illustrating the many ways in which Stephanie requires help with the activities of her daily living.

[149] Mr. Fleck retained Barbara Baptiste to prepare a long-term functional needs and costs analysis. This, together with an accompanying table of costs was accepted as Exhibit 31 and Ms. Baptiste testified at length on the rationale and detail of her analysis. Ms. Baptiste is a rehabilitation counsellor and consultant. She holds a Masters Degree from the University of Toronto and has done post-graduate work at the University of Florida in life care planning for neuro-trauma patients, is active in the Ontario Neuro-Trauma Foundation, and is carrying out research on the needs of brain and spinal cord injury patients. She is also the past president of the Ontario Brain Injury Association. She has done life-care plans for between 350 and 450 people. She was qualified as an expert in the area.

[150] Her approach, followed in this case, was to meet with Stephanie and her mother, gather and review the available reports, try to draw reasonable conclusions as to the future goals and plans of Stephanie and then attempt to estimate, using Ontario databases, the various types of assistance that Stephanie might need and the cost thereof, over the various stages of her

lifetime. In doing this she has to try to meet what are perceived to be Stephanie's needs but also provide optional, reasonable choices.

[151] Ms. Baptiste pointed out that Stephanie is currently in what might be called a therapeutic environment at school. Her life is structured and she has considerable support. Moving from that to living independently will be a huge step for her and she will require considerable assistance in so doing. Similarly she would need assistance in entering, or trying to enter, the workforce. She will have problems with relationships and will need help in that area. If she becomes a parent she will certainly require assistance. The whole process of aging will be more difficult for her due to her current disabilities, and her needs will increase with age.

[152] Mr. Woodward retained Yvonne J. Pollard primarily to critique the report and cost estimates of Ms. Baptiste. Ms. Pollard is a registered rehabilitation professional who has had eight years' experience in providing case management services to persons with all kinds of disabilities. Before that she had worked as the special needs placement officer at Fanshaw College, placing severely disabled persons in workplaces. She accepted and agreed with a number of the recommendations of Ms. Baptiste. As I take it that those areas are now not contentious, I shall focus upon the areas of difference.

[153] The first two items listed by Ms. Baptiste were annual follow-ups with a psychiatrist and botox injections. Ms. Pollard would not support those items as expenses because if the family physician made a referral to a psychiatrist O.H.I.P. would fund it. Presumably the same would apply if Botox was medically necessary. I agree with both of these objections.

[154] Ms. Baptiste recommends two further neuro-psychological assessments during Stephanie's lifetime. Ms. Pollard does not support this as Drs. Grace and Sweeney, who carried out earlier neuro-psychological assessments, did not recommend further ones. The reports indicated that, in effect, Stephanie had plateaued. Ms. Baptiste saw further assessments as helpful in providing specific information at the time of Stephanie attempting to enter the work world, and much later for assessing her needs as a senior. I accept Ms. Baptiste's position as being reasonable.

[155] Ms. Baptiste recommended 25 hours of neuro-psychological consultations over Stephanie's lifetime. Ms. Pollard feels that two consultations at three hours each would be reasonably sufficient and that Stephanie should be looking primarily to persons such as rehabilitation therapists and job coaches for support. In my view, although Stephanie is much improved in her current environment, she has had emotional and psychological difficulties in the past, and Dr. Franks, among others, has warned that she is bound to experience failures in the future which could affect her both physically and mentally. I accept Ms. Baptiste's view that 25 hours of such consultation time over a lifetime is reasonable.

[156] Ms. Baptiste recommended 10 to 15 occupational therapy assessments over Stephanie's lifetime. Ms. Pollard felt that was excessive but that such assessments should occur to assist in transitions, for example, a move from a college residence to her own home or

apartment, when she starts a new job, etc.. Ms. Pollard recommended five such assessments. Ms. Baptiste simply responded that she had given her considered opinion, based on 20 years of broad experience and she felt that Ms. Pollard in her suggested reduction here, and also elsewhere relating to professional input, was overlooking the greater needs and difficulties that would arise in the aging process towards the end of Stephanie's life. It seems reasonable to me at this point to accept that such assessments would be required primarily when there were changes in Stephanie's life, but at her age and in her situation, it is hard to imagine that changes equivalent to her move from a school residence to an apartment would occur only five times in her lifetime. I find support for this concern in the remarks of Mr. McDevitt who did the attendant care assessment. He felt that there would be a need for one of his assessments for every change in living or working arrangements, including a new assessment in six or eight months time, even if Stephanie was still on college. Ms. Baptiste used an average figure of 12½ such assessments. I think that it is more reasonable, in view of present uncertainty, to increase that to the 15 which Ms. Baptiste recommended as the upper limit.

[157] Similarly, Ms. Baptiste makes provision for annual occupational therapy interventions and annual physiotherapy assessments. Ms. Pollard feels that is excessive. She felt the occupational therapy assessments should be limited to five major transition periods in Stephanie's lifetime. Ms. Baptiste responded that when she speaks of one assessment per year what she is doing is mathematically averaging the cost over a lifetime, but in fact there might be need for several assessments within one year, then a fairly long period with none at all. She points again to the need for immediate assistance at the time of changes, and of increasing needs during the aging process. I accept the recommendation of Ms. Baptiste as reasonable.

[158] Ms. Baptiste added to her original report, costs for physiotherapy assistant services to perform passive stretches on Stephanie's arm. The annual cost of this was estimated at \$11,450. Ms. Pollard does not support this and explains that in her view a disabled individual should not be burdened with too many daily interventions which would complicate her life. She feels that a daily intervention from a physiotherapy assistant would be intrusive and that the stretching exercises etc. can be taught to a family member, friend, rehabilitation therapist or someone else. I agree with Ms. Pollard. At the moment, the daily stretches which she requires for her partially paralyzed arm and hand are carried out with the assistance of another student. When she is at home her mother assists in this. It seems sensible to have that approach continue for Stephanie's lifetime. However, it is essential for Stephanie that these stretching exercises be carried out daily and be carried out properly, to avoid painful cramps and further loss of function. In my view it would therefore be prudent to quadruple the provision for physiotherapy assessment to four times a year, so that Stephanie and whoever was assisting her could go to a physiotherapist on a regular basis, both for a check-up as to how well the stretches had been carried out and to go through the regime with the physiotherapist to make sure the process was followed exactly as it should be.

[159] Ms. Baptiste recommends having available four to six sessions a year with a psychologist for counselling, an annual cost of \$900. Ms. Pollard feels that this is excessive and that such counselling should be limited to four to six sessions during each of the five life phase

changes. For the reasons above-stated in connection with neuro-psychological consultations, I feel it to be very important for Stephanie's well-being to have psychological assistance available to her when needed. Here too, Ms. Baptiste is averaging costs over a lifetime and I support her recommendation, as I feel that in this way if and when Stephanie faces failures or disappointments, support will be available to her.

[160] Ms. Baptiste recommends a rehabilitation assistant for six to eight hours a week for the first three years and thereafter for two hours a month. Ms. Pollard strongly recommends that such support be provided, and sees such person as not only helping Stephanie achieve functional independence, but also as performing some of the specialized services Ms. Baptiste recommends. I accept the recommendation of Ms. Baptiste for a rehabilitation assistant for six to eight hours a week for the first three years but feel that, thereafter, accepting Ms. Pollard's thinking, the time allotted for such assistance should be increased from two hours a month as Ms. Baptiste suggested to four hours a month. That would permit such an assistant to provide some items of attendant care, and assist in the area of financial affairs management, and also actually be able to see Stephanie at least once a month, bearing in mind the four-hour minimum charge most service suppliers impose.

[161] Tied to the above, Ms. Baptiste recommends financial affairs management for two hours a month, a position not supported by Ms. Pollard, who says that any strategies for budgeting and setting up and paying bills can be handled by the rehabilitation assistant. In my view, while Stephanie might end up with a substantial investment portfolio, on which advice would be required, the handling of her ordinary day-to-day expenses should be very simple, and she should not need a separate professional to set up a household budget and to see that the bills are paid. I recognize the comments that Stephanie might be taken advantage of, but feel that her rehabilitation counsellor could adequately protect her. I therefore do not accept the proposed expenditure for financial affairs management.

[162] Ms. Baptiste had a long list of assisting devices, ranging from a manual wheelchair, which she felt would be needed in Stephanie's later years, through items like replacement tips for her cane. Ms. Pollard notes that Dr. Goldstein had accepted the entire future care costs analysis, but Ms. Pollard could not see the justifications for each of these items in the documents she reviewed. She therefore neither rejects nor recommends them. I see this as a well thought out list. The explanations for many of them were given in oral testimony, and I accept the proposed expenditures for them.

[163] Ms. Baptiste had added, in her updated report forwarded to Mr. Fleck November 28, 2001, two driver's assessments and eight to ten driver's lessons for each assessment. Ms. Pollard supported that because initial assessments showed that Stephanie does have the ability to drive, and being able to drive would be an important component of her independent living. Stephanie at one point was ready to start driving but that Wawanesa, the family insurer, refused to insure the family vehicle if Stephanie was the driver. This is perhaps understandable as the Wawanesa was at the time showing her as catastrophically disabled. However, if the insurance position can be straightened out it would be important for her to be able to drive, and I support

the cost of the assessments and lessons. I do not see the costing for this carried forward in the Rich Rotstein report, and if it is not there it should be added.

[164] Ms. Baptiste included a number of items for transportation or taxi costs, under different headings. Ms. Pollard supported the trips to and from Toronto for school purposes as well as taxi costs while at college, but felt that after college these should be substantially reduced and transportation to the esthetician should be cut out entirely and covered in other trips. Ms. Baptiste explains that the heading for further transportation was not intended to cover getting to and from medical appointments, which she agrees would be limited in the future, but transportation for social purposes like going to sports events or a theatre, and she was looking generally to the costs of trips from Sarnia to London or from London to Toronto. While it would certainly give Stephanie a feeling of independence if she was able to drive, I am sure she would appreciate there would be limits on her driving, and prudence may well dictate against long trips or trips in inclement weather. Stephanie is forced to use an esthetician to perform items of personal care that she cannot do herself because of her disabilities. The proposed costs for taxi trips to the esthetician is minimal. Ms. Baptiste is, of course, forced to attempt to make reasonable estimates of what future costs could be, not knowing whether Stephanie might ever obtain a driver's license or where Stephanie might be living at various times during her life. I find that when considered in total, the provision for transportation costs for Stephanie are reasonable and I accept them.

[165] Ms. Baptiste has included estimates for both a palm pilot and a laptop computer. Ms. Pollard supports the palm pilot as giving assistance with residual memory deficits and supports the laptop computer while Stephanie is in school, but feels thereafter she would not need it. I have heard testimony as to the child-like scrawl which is the best Stephanie can produce by way of handwriting, due to her disabilities. I would support a laptop computer as a partial substitute for Stephanie's ability to communicate in longhand. A comment had been made that the laptop would facilitate a cognitive remediation program. I think that the Internet is now well recognized as a learning tool, especially by younger persons, and in Stephanie's case this may be of real assistance to her, in view of her difficulties with mobility. I do not see a figure included for high speed Internet access. If this had been overlooked perhaps a figure could be brought forward for inclusion, together with the defence response thereto, at the further hearing which will be necessary to finalize these figures. I accept the proposed expenditures for a laptop computer.

[166] Ms. Baptiste proposed several items of exercise equipment. Ms. Pollard supports all of them except a recumbent exercise bike and an elliptical trainer. Stephanie already has an exercise bike but a total of \$2,905 was included for replacements of that bike over her lifetime. She does not have an elliptical trainer but enjoys using one at the Y in Toronto. The lifetime cost for that would be \$14,143. In my view, the exercise bike should be continued and the cost allowed. That is a simple piece of equipment that Stephanie could use wherever she lives. However, the rehabilitation planned for Stephanie includes membership in a fitness club and she herself enjoys, at the moment, going to the North York Y to swim and use an elliptical trainer there. The Y provides not only exercise but an opportunity for social interaction. If she had an

elliptical trainer at home that, in my view, would be a disincentive to going to the Y or a fitness club, which carries with it other side benefits. I therefore agree with Ms. Pollard that the provision of an elliptical trainer at Stephanie's home should not be supported.

[167] Ms. Baptiste made provision for 30 sessions of family counselling. Ms. Pollard feels that provision should be reduced to 10 sessions, as Stephanie is now getting along much better with her family; but if she marries and has a family of her own she might require some assistance in future. My own view, having heard from the family members, is that there is a continuing risk of conflicts, which if they occurred and were not immediately corrected, could be devastating to this extremely close knit and supportive family. No matter what professional help might be provided for her, an impairment in the support from her own family members would be very traumatic to Stephanie. That risk in my view fully justifies the expenditure proposed by Ms. Baptiste on this item.

[168] Ms. Baptiste had recommended a long-term care plans/analysis at a cost of \$3,800. Ms. Pollard apparently took that to mean an actuarial analysis and she did not support it on the basis that she expected an actuarial analysis would be completed in respect to the costs identified in the current future care cost plans. Ms. Baptiste in her amending letter of November 28, 2000, recommended two such plans at a total cost of \$7,600. She does that on the basis of concern over Stephanie's future living environment and the site of her future care. The analysis would include making recommendations on housing, with Ms. Baptiste's current recommendation being a one-storey living environment, either a bungalow or a condominium. I would take it from those comments that an actuarial analysis was not what was contemplated. I accept Ms. Baptiste's recommendation. In my view Stephanie will require independent expert assistance in making choices in relation to a permanent home. Given her age, I would anticipate that this is something that will have to happen more than once.

[169] Ms. Baptiste recommends vocational rehabilitation counselling in a total amount of \$14,112 and Ms. Pollard supports this. She sees this as involving a vocational specialist who could assist with job search techniques and job acquisition and maintenance. However, Ms. Baptiste also recommends a psycho-vocational assessment at a cost of \$1,502.22 and follow-up on it at a further cost of \$540. Ms. Pollard does not support this on the basis of the assessment already completed by Dr. Trevor Smith which led to her current course at Seneca College. The problem with Ms. Pollard's approach is that it does not take into account the very serious questions that have been raised in the evidence, and as expressed above, in my own mind, over the ability of Stephanie to successfully complete the course, or if completed, to find employment as a library technician. In view of Stephanie's obvious desire to be gainfully employed, and the very persuasive evidence that she will have great difficulties in achieving that goal, especially in her current chosen field, I not only approve of Ms. Baptiste's recommendations, but am of the opinion that the allowance therefore should be doubled, so that she would have not just one, more but two more chances to find suitable and satisfying employment. The figure I would allow for these items is therefore \$4,084.44.

[170] Ms. Baptiste recommends continuance of Stephanie's current academic supports such as note-takers and tutors for three to five years. Ms. Pollard joins in that recommendation. Ms. Baptiste did not have the costs for that because these supports are being supplied by the accident benefits coverage. If that is to continue, there would be no need of assessing the costs. If for some reason that is to be handled directly in future, the costs figures should be obtained from the insurer.

[171] Ms. Baptiste recommends job coaching at a cost of \$3,015.60, plus two or three work trials at a total cost of \$6,085. Ms. Pollard recommends substantially more than that. In her view, Stephanie might need to practice work trials before seeking paid employment and then would need job coaching at a decreasing frequency over six months. Her recommendation is for 642 hours of job coaching, and no separate figure for a work trial. I assume that she would use the same hourly rate of \$50.26 as Ms. Baptiste used so that her figure would be \$32,266.92. I accept Ms. Pollard's view that very extensive assistance, in finding and educating a proposed employer, as well as helping Stephanie to fit into a work place and become productive, will be needed if she is to find and keep a worthwhile job. I accept Ms. Pollard's amount as a reasonable estimate of the cost of appropriate job coaching, while appreciating that the detailed schedule she laid out might not be followed exactly. I therefore allow \$32,266.92 in connection with job coaching and work trials.

[172] Ms. Baptiste recommends a work site assessment at a cost of \$715.71. Ms. Pollard does not accept that, feeling that it should be incorporated into occupational therapy time. I would see this as a specialized assessment of what special needs Stephanie might have in a work place, with the information coming from it being transferable to future jobs. I would support the cost of such an assessment. I see that the cost thereof was revised upward to \$825, which is the figure I support.

[173] Ms. Baptiste recommended five home accessibility assessment reports at an updated cost of \$21,400 plus bilateral hand rails to a basement (five sets) at a cost of \$4,108. Ms. Pollard does not support these expenditures. Neither do I. I accept Ms. Pollard's reasoning that it is obvious that Stephanie should be looking for a one-floor home or condominium, and making changes, if needed, such as putting grab bars in the bathroom would be obvious to Stephanie and her other support persons.

[174] Ms. Baptiste made provision for an attendant care assessment, at an updated cost of \$2,735, plus such attendant care services as might be recommended by that assessment. Ms. Pollard does not support attendant care services, on the basis that if Stephanie has a rehabilitation assistant plus assistance with cleaning, cooking and other household tasks, then she could not see what further assistance Stephanie might need. In my view this misses the point. As I understand it, this is a problem for the accident benefits insurer, who is required, up to the policy limits, to fund such attendant care as is recognized as needed under the regulations. I assume therefore that the insurer would be paying for the cost of the assessments, and then would be paying the monthly amount identified by such assessments. As previously noted, I cannot imagine that anyone expects that an attendant would suddenly appear to work for a minute or two in helping

Stephanie with her earrings or zipper. Instead, I would expect any funds coming from the insurer would simply be used to provide for additional time from other persons already on the scene.

[175] Ms. Baptiste provided for a placement fee for a nanny of \$1,167.83, plus a live-in nanny for seven years at a cost originally estimated at \$134,683.92, then reduced to \$110,676 to cover the reasonable possibility of Stephanie having children. Ms. Pollard supports the provision of a nanny but suggests that this be cut in half to allow for services to be provided by the other parent, and further reduced by four hours per day on the assumption that Stephanie would only work part-time. As I read Ms. Pollard's recommendation, it would really consist of providing a babysitter when neither parent was home. If that was the situation, I would think a daycare would be more reasonable. As I understand the evidence, Stephanie is capable of having children, but because of her limitations, someone would have to be there to help care for the child even when Stephanie was there. Further, the evidence points to a much higher risk of a relationship breaking down than would have been the case if Stephanie had not been injured. I therefore do not agree with the reduction suggested by Ms. Pollard and accept the figures put forth by Ms. Baptiste.

[176] Ms. Baptiste recommends the retention of a case manager for two hours a month at an annual revised cost of \$2,598 a year. Ms. Pollard makes no comment on this, so presumably does not object. I presume that this recommendation encompasses the continued services of someone like Ms. Weymouth. In my view this is very important if all of the future care and support services for Stephanie are to work. Obviously, because of her disabilities, she may not be able to, and should not be put in the position of having to hire, supervise in an objective way and possibly discharge the various persons that are assisting her. I see the need for someone with professional training and knowledge, not directly involved in the caregiving process, to oversee the rehabilitation and support efforts, and to make adjustments in the plans as may be needed from time to time. I support this proposed expenditure.

[177] Ms. Baptiste recommends the provision of a homemaker. Her specific recommendations are for a homemaker for three hours a day, seven days a week for 48 weeks until Stephanie reaches 30, when this would increase to five hours a day until age 50, when it would increase to seven hours a day. Ms. Pollard supports the provision of a homemaker, but recommends that this be cut to three hours, twice weekly, which in her view should be sufficient to assist with food preparation, laundering/mending, grocery shopping, etc.. She notes that a number of assistive devices have been approved, and that cleaning services are separate. In my view, the reasonable answer lies somewhere between the two. As the defence carefully pointed out, Stephanie now buys groceries and prepares simple meals. However, that seems to consist of her buying two or three items at a grocery store near the school residence, bringing them back in a knapsack, and preparing some simple thing in an electric fry pan or a microwave. The evidence of the plaintiff's experts was that planning menus for a week of regular meals, and shopping for them, would be an entirely different matter. The premise to this area would be that Stephanie would be living alone in a one-storey bungalow or condominium. I would think that the laundering, bed making, tidying, etc. would be fairly simple, and that Stephanie could quite probably, unless further incapacitated by age, be able to take care of herself for breakfast and lunch. A nutritious dinner, however, would be another matter. In my view, she could live

comfortably, to age 50, with the assistance of a homemaker for three hours a day three times a week. In that way, she could have freshly prepared dinners three days a week, and have the meals for the other four days all assembled, ready for simple cooking or re-heating. I see no need for a change in that at age 30. However, Ms. Pollard accepts the age 50 as a time for some change, which seems to accord with the medical evidence. I would at that point increase the availability of a homemaker to three hours a day, seven days a week.

[178] Ms. Baptiste also recommended having a cleaning service do a cleaning once every two weeks and do heavy housecleaning two times a year. Ms. Pollard makes the point, with which I agree, that Stephanie's need for assistance with cleaning will likely increase with age. She recommends that the cleaning service be provided once a week after age 30 and that the heavy housecleaning be increased to three cleanings per year after age 30 and five of such cleanings per year after age 50. I accept those recommendations.

[179] Ms. Baptiste recommends the provision of lawn care and snow removal. Ms. Pollard does not accept this on the basis that she would expect Ms. Walker would live in an accessible condominium. The problem with this is that, in a condominium, Stephanie would still be paying for those services, only now she would be paying for them in her condominium fees. The whole purpose of the exercise is to make sure that a reasonable amount of money is available to take care of Stephanie's reasonable needs. For that purpose, it makes no difference whether the money would go directly to the service or indirectly through a condominium corporation. The estimated amounts seem reasonable and I approve the same.

PRESENT VALUE, DISCOUNT RATES

[180] All of the proposed future care costs proposed by Ms. Baptiste were assembled by Rich Rotstein, into a series of schedules, showing initial, annual and lifetime costs. The foregoing decisions on a number of items will all require changes in those schedules. This was contemplated at the end of the evidence and argument at trial, as it was clear that this and other matters, such as gross up and structure, would have to be dealt with in a further hearing before a final judgment could issue.

[181] The present report, Exhibit 34, was prepared by Ian Wollach of Rich Rotstein. He prepared two separate scenarios of lifetime costs. In scenario one, per rule 53.09 (1), a discount rate of 2.5% was used. In scenario two, the discount rate of 2.5% was used except in relation to what are purportedly professional services, where a discount rate of 1.5% was used, relying on the authority of *Roberts et al. v. Morana et al.* (1997), 34 O.R. (3d) 647, affirmed on appeal at (2000), 49 O.R. (3d) 157.

[182] The appellate decision *Morana v. Roberts* said nothing about the discount rate. In the trial decision, Mr. Justice O'Brien commented specifically on discount rates at pages 680-681. Mr. Murray Segal testified before him and was specifically qualified as an expert to give an opinion relating to future increases in wages and salaries. He condensed Mr. Segal's evidence as follows:

"On some of the items considered in future care costs he opined average wages and salaries involved would increase at a significantly higher rate than general price inflation or the inflation rate."

He notes at pages 684-686 that Murray Segal gave specific evidence on using a 1.5% discount rate in connection with case management, psychotherapy, chiroprapist, physiotherapy and dental work. Mr. Justice O'Brien relied on the decision of *Ligate v. Abick* (1996), 28 O.R. (3d) 1 (C.A.). In that case Morden A.C.J.O. dealt with the issue of the discount rate in a section commencing at page 8. Mr. Murray Segal had testified at the trial in that case and he quotes to some extent from Mr. Segal's evidence which seemed, in that case, to relate to the wages of average workers increasing at a faster rate than inflation. Morden A.C.J.O. concluded as follows:

"In the present case there is evidence of a factor other than future investment and price inflation rates – the rate of future wage inflation – and I cannot say that the trial judge erred in the manner in which he applied this evidence."

In coming to his conclusion he quoted from *Giannonne v. Weinberg* (1989), 68 O.R. (2d) 767 (C.A.) where the Rule was discussed and it was said that if there are other factors that can affect the discount rate, then the 2.5% starting point may be adjusted. That case in turn quoted *Dziver v. Smith* (1983), 41 O.R. (2d) 385 (C.A.) where Weatherston J.A. said:

"If no evidence is adduced by either side as to these additional factors [additional to future investment and price inflation rates] the court may safely apply rule 267(a) [the predecessor of rule 53.09] but it should not deviate from the rule without evidence one way or the other."

Morden A.C.J.O. went on in *Ligate v. Abick* to express concern that, if the 2.5% rate is not generally fair, perhaps the rule should be reconsidered.

[183] I take it from the foregoing that, although comments have been made, the state of the law is still as Weatherston J.A. put it in 1983, that unless there is evidence from either side the rate provided for in the rule is to be used.

[184] In this case, Mr. Wollach testified. Part of his testimony was that professional fees should be discounted at 1.5% and not 2.5%, as professional fees are increasing faster than the rate of inflation.

[185] Mr. Wollach testified to many things, and was not cross-examined on the two discount rates. Mr. Woodward in his submissions at the end of the trial appears to me to have accepted the theory that professional fees may increase faster than the rate of inflation. His objection was that in Mr. Wollach's report he had applied the lower discount rate to many services which Mr. Woodward felt were not professional in nature, such as a homemaker.

[186] I am satisfied that I have evidence before me upon which to adopt the use of the 1.5% discount rate in relation to professional services. However, I adopt Mr. Woodward's objection to the current schedule. In my view, a "professional" in this context would mean someone who has received specialized training or education, and formal certification as a member of a profession. Looking down the list I think obviously of neuro-psychologists, speech pathologists, occupational therapists, physiotherapists, psychologists, vocational rehabilitation counsellors, psycho-vocational assessors, rehabilitation case managers, and financial managers. Family counsellors probably would also fit that classification, rehabilitation assistants may, whereas estheticians (following the lead of O'Brien J. at p. 686 of *Roberts, supra* where he disqualified a manicurist), nannies and homemakers would not. These are my tentative views, given without the assistance of specific evidence or submissions, and I invite counsel, if so inclined, to call evidence or make submissions as to who exactly would fit the class "professional" identified by Mr. Wollach's evidence.

FINANCIAL MANAGEMENT

[187] Mr. Wollach also included, in scenario two, a provision for a 5% allowance for financial management and financial administration. Ms. Baptiste had recommended two hours a month of financial affairs management but neither she, nor on my recall anyone else had recommended a percentage fee for the management of Stephanie's money. This apparently comes also from the *Roberts v. Morana* case where Mr. Justice O'Brien noted at p. 702 that Murray Segal had given evidence that there should be an additional 5% of the gross award for both financial management and normal financial administration. O'Brien J. accepted that evidence but held off on what to do with it until after he heard submissions on a structured judgment or portion thereof. In that case, there was straightforward evidence that Penny Roberts was incapable of managing her financial affairs. Regrettably, her family could not be of help to her in that regard. Here, while Stephanie's family are not experts in wealth management, they are all intelligent and well educated. I think that this is an area which requires some further exploration after a decision is made as to how much, if any, of an eventual award is to be structured. I invite submissions and evidence regarding the type, extent and cost of financial management and administration that might be called for here.

LOSS OF INTERDEPENDENT RELATIONSHIPS

[188] This is a heading of future pecuniary loss, based on the proven and well known fact that two people can live together less expensively than they can live apart. This is a relatively new head of damages, but at the same time has been discussed frequently enough to acquire the acronym L.O.I.R.. I was given the case of *Reekie v. Messervey* [1989] B.C.J. No. 797 and the case of *Osborne (Litigation Guardian of) v. Bruce (County)* [1999] O.J. No. 50 by Mr. Fleck, and the case of *Bartosek (Litigation Guardian of) v. Turret Realities Inc.* [2001] O.J. No. 4735, by Mr. Woodward for the defence.

[189] In *Reekie*, Lambert J.A. for the British Columbia Court of Appeal referred to a number of previous British Columbia decisions, in which an award under this head of damages

had been made, and noted that “If a financial loss is suffered and it arose from the accident then compensation must be awarded equal to the best estimate of that financial loss. The difficulty suggested by the cases is the difficulty of proving that any loss at all arose under this heading.” In that particular case, which involved a 21 year old woman rendered paraplegic, considerable evidence on this issue was called before the trial judge, including a professor of family sociology and a consulting economist. The trial judge awarded a lump sum of \$50,000 for loss of opportunity to form a permanent interdependency. The Court of Appeal did not interfere with that award. In *Osborne*, which involved a 14 year old girl rendered paraplegic, with minimal brain function, O’Connor J. of our court took it as obvious that she would never marry or form a spousal relationship with another wage earner. Peter Ross, Economist, called on behalf of the plaintiffs in that case, provided a number of calculations based on various assumptions concluding with his opinion that the loss would calculate at \$176,731. O’Connor J. felt that the contingencies were somewhat speculative and noted that, in *Reekie*, the trial judge and the Court of Appeal accepted a lump sum figure. O’Connor J. assessed a lump sum amount of \$125,000.

[190] In *Bartosek*, Kent J. also of our court, had to assess, in 2001, the damages arising from an accident in 1986 which left the plaintiff, a six year old boy, with permanent catastrophic injuries including significant brain damage. Peter Ross also provided calculations for the plaintiff in that case, resulting in a figure of \$239,790 for L.O.I.R. damages. Mr. Justice Kent concluded that in the factual situation before him, damages under this head could not be said to be anything other than “... too speculative and too remote.”

[191] In this case, Mr. Wollach prepared, in his report of September 6, 2002, Exhibit 33, in Schedule 5 thereto a detailed calculation of the present value of the loss under this heading, based on the contingencies and assumptions set out in the notes to that Schedule and also at page five of the report itself. The figure arrived at was \$150,384. Peter Ross, acting for the defence in this case, made no comment on this part of Mr. Wollach’s report, and indicated in his evidence that he was not instructed to do so.

[192] In this case we have convincing evidence that before the accident, Stephanie had been an outgoing, personable and well liked person, who had dated throughout her four years of high school. She has a loving family, with parents in a committed and mutually supportive relationship. From this background, while nothing is certain, the strong probability would have been that she would have married, and that the marriage would have endured. Now, she has not only physical, memory and cognitive difficulties, but also personality problems which have left her with few if any friends, and led her own sisters to say that she can be difficult to be with or talk to. It is obvious that her chances of marriage, or of any interdependent relationship, have been significantly reduced, and if such a relationship is entered into, the chances of it breaking up have been significantly increased.

[193] Mr. Wollach, in his calculations, uses average ages for the date of marriage, assumes a shared income until age 63, assumes a marriage to someone of similar socio-economic background, here a University degree (which I had earlier accepted) and builds in, through the future wage projections, all of the contingencies for sickness, death, withdrawal from the

workplace, etc. He also applies two contingencies which I regard as generous on the facts: a 25 % possibility that she would not marry absent the accident; and a 50 % possibility that she would marry despite the accident.

[194] I would be prepared to accept Mr. Wollach's figures as presented, except that he has not dealt with another item already dealt with in these reasons, the cost of a live-in nanny. That projection had been based upon Stephanie's difficulties in dealing with a child or children. Although that projection saw a need for child care even in Stephanie's presence, it did not take into account the possibility of a "significant other" being present part of the time to help in raising a child or children. In my view a contingency should be provided for this, and an appropriate place would be by way of further deduction from an allowance under this heading of damage.

[195] I accept the premises and contingencies allowed for by Mr. Wollach, and while recognizing that it would be possible for Stephanie to be both a single mother and have an interdependent relationship during her lifetime, to avoid a double recovery being made, I apply a further contingency to Mr. Wollach's figures re child care. I therefore assess the damages for future loss of interdependent relationships at \$125,000.

FAMILY LAW ACT CLAIMS

[196] Mr. Fleck, in his submissions on this topic, relied heavily on *To v. Toronto Board of Education* (2001), 55 O.R. (3d) 641 (C.A.). This was an assessment of the damage arising from the wrongful death of a 14 year old grade nine student. The To family was of Chinese decent, living in South Vietnam who, at the time of the invasion by North Vietnam, escaped to Hong Kong and eventually immigrated to Canada. The trial evidence went to some extent into the particular culture of the family, the high expectations for the deceased, the first born son, and the anticipated financial and social support from him. The factual situation is vastly different from that presented in this case. However, Osborne A.C.J.O. with Austin and Laskin J.J.A. concurring, reviewed the law, and especially the question of quantum re *Family Law Act* claims. I am of course guided by that instruction and bound by the conclusions. The specific conclusions reached in *To* was that \$100,000 to each of the parents was at the high end of an accepted range but was roughly comparable to a \$45,000 award made as of April 1978. However, a \$50,000 award to the sister was regarded as exceeding the accepted range of damages and as being inordinately high. That award was reduced to \$25,000.

[197] The statutory provision to make such a claim describes it as a claim for pecuniary loss, and compensation for the loss of guidance care and companionship that the claimant might reasonably have been expected to receive. Here we have what has been described as a very close knit family, with the parents and four children all mutually involved in their athletic and other undertakings. Those close ties have continued as the children became independent, with the older two girls now married, practicing their professions and starting their own families. Stephanie's accident has changed the family dynamic. Obviously, while Stephanie survived, she has survived as a much different person than she used to be. Instead of the parents and siblings having

reasonable expectations of guidance, care and companionship from her, they are all involved in giving those very things to her. Even with the best rehabilitation support available, and Stephanie's own determination to live independently and usefully, that need for guidance, care and companionship will extend for the balance of Stephanie's life. What might make it particularly difficult is not the obvious disability – the partial paralysis – but the invisible injuries arising from her closed head injury – the changes in her memory, cognitive ability, and personality.

[198] The close and constant involvement of Stephanie's parents in her rehabilitation, from her mother virtually moving in to her hospital room while she was comatose or semi-comatose, through her father arranging for her to take an art class close to his own classroom, and through the both of them driving to and from Toronto every weekend when Stephanie first started school there, had been detailed in the evidence. Their close and constant attendance has been credited by several of the professionals with Stephanie's remarkable recovery, in view of her massive injuries. No direct claim has been put forth by them for pecuniary loss, and it is true, as Mr. Woodward pointed out, that Wawanesa has settled a claim for attendant care to date at \$40,000. If I take that as a mere substitution for what is often seen in these cases, a detailed schedule of miles driven and hours spent, in my view, that type of claim is separate and apart from the general damage claim allowed under the statute. Here, separate consideration must be given to what Osborne A.C.J.O., quoting the words of Krever J. in paragraph 30 of *To*, referred to as "immeasurable and incalculable". I assess the damages under this heading of Rosemary Walker, Stephanie's mother at \$65,000 and of Gary Walker, Stephanie's father at \$50,000.

[199] Each of Stephanie's three sisters have, in their own ways, and subject, as Mr. Woodward correctly pointed out, to the developments in their own lives, given guidance care and companionship to Stephanie, and have suffered the loss of those same things from her.

[200] Laura spoke of the difficulty of having a normal conversation with her, and of involving Stephanie in her own marriage, despite the difficulties for Stephanie. Alyssa spoke of the difficulty in having a relationship with Stephanie now because she doesn't understand things like marriage because she herself does not have relationships with people. She involved Stephanie in her own wedding, where Stephanie disappeared on her for one hour. She plans to include Stephanie in her own circle of friends, to widen out her social relationships. Alyssa required psychological counselling after the accident. Christine described Stephanie before the accident as funny, friendly, outgoing, social and fun to be around while now she is hard to deal with over the smallest of things. She spoke of Stephanie being upset at Christine's social life, which includes people from the high school that used to be Stephanie's friends. Despite the difficulties, she makes regular dates to go out with Stephanie to eat or to a movie. I accept that all three girls have committed themselves to including Stephanie in their lives in the future, and to providing companionship to her despite any inconvenience to themselves. I assess the damages of each of the three sisters at \$15,000 under the *Family Law Act*.

[201] Christine was a passenger in the accident. She sustained some cuts and bruises and required two or three stitches to her mouth, which left a small scar. She suffered some

psychological problems, which related both to the accident itself and to the catastrophic injuries to her sister, which required psychological counselling. I agree with Mr. Woodward that these injuries do not meet the statutory exclusion under Bill 59. However, I assess Christine's general damages for personal injuries at \$3,500, for the sake of completeness.

ACCIDENT BENEFITS

[202] Stephanie and her parents commenced a separate action against the Wawanesa Mutual Insurance Company, the insurer of the van Stephanie was driving on the night of the accident. That action claimed declaratory orders relating to the statutory accident benefits or alternatively damages, including damages for bad faith. During the trial, a partial settlement was made, under which the Walkers accepted \$40,000 inclusive of interest, on account of attendant care benefits to the date of trial and a further \$14,000 in full satisfaction for medical benefits "as mediated" including claims for payment of medical reports and rehabilitation reports submitted in February of 2000. Costs in relation to those claims were also settled at \$5,000, plus applicable GST. Part of the judgment will include those settled claims. Further, I was advised that the plaintiffs had withdrawn any bad faith claims.

[203] The one matter that continued through trial was the claim for "non-earner benefits". It was understood that future care claims or future attendant care claims under the accident benefits could continue to be made, and in fact there is a statutory subrogation provision as between the insurers so that the Wawanesa could recover from the insurer of Marcus and Ritchie.

[204] The terms of this benefit are set out in s. 12 of Ontario Regulation 403/96 of the *Insurance Act*. The applicable limiting portion, as Stephanie was enrolled full-time in high school at the time of the accident, is s. 12(1)3, which says:

"The insured person suffers a complete inability to carry on a normal life..."

The regulation, in s. 2(4), defines "a complete inability to carry on a normal life" as:

"...the person sustains an impairment that continuously prevents the person from engaging in substantially all of the activities in which the person ordinarily engaged before the accident."

[205] Mr. Adams advised that there are no reported court cases interpreting this provision but that there are a number of decisions by arbitrators appointed by the Financial Services Commission which considered what those words would mean. Mr. Adams' interpretation was that the court would have to consider the activities in which Stephanie would normally engage pre-accident, and the ones which she had been continuously prevented from engaging in since September of 1999. The Wawanesa in fact paid those benefits until September 7, 1999. It appeared, from argument, that the Wawanesa perhaps thought that those benefits should have ended when Stephanie was able to get up the stairs in her home to her own bedroom,

but they were unclear as to the date, and picked September of 1999 because that was when Stephanie started to attend and live at Seneca College in Toronto.

[206] I have considered the many arbitrators' decisions which Mr. Adams assembled for me. I found in many of them that the arbitrator was unfortunately led into detailing a whole shopping list of various physical activities and into a consideration of whether or not the person was completely prevented from doing that activity, despite the fact that what was done was being done so poorly it could not be said to have contributed to a "normal life". However I accept that the legislation now, in speaking of "complete inability", has imposed a stricter test than used to be imposed under previous similar provisions, which spoke of "substantial inability".

[207] In my view the regulation should be looked at in a purposive way, and the factual situation has to be considered contextually. I note that s. 12(1) starts off by speaking of an insured person "...who sustains an impairment...". It does not talk about someone who is completely disabled or, for that matter, disabled. The qualifier is that the person has to suffer "...a complete inability to carry on a normal life...". The definition of what that means again speaks of a "impairment" before speaking of "...continuously prevents the person from engaging in substantially all of the activities in which the person ordinarily engaged before the accident".

[208] Stephanie was a student before the accident. She fits into the part of the regulation that deals with full-time students, or those who completed their education within the past year and were not employed in employment recognizing the education and training received. It seems to me that in this way some recognition was being given that the person who is a student is not to be expected to forever continue to engage in the activities of a student. Common sense would dictate that students who are living at home are expected to eventually graduate, get jobs commensurate with their education, and live independently.

[209] During argument, I characterized the "activities" that Stephanie ordinarily engaged in before the accident as soccer, socializing, and studying. As I understood it, in her mind soccer and other athletic activities, and her very active social life, were the most important activities for her, with her studies ranking a poor third. I cannot see her as listing the pouring of juice and making of toast in the morning, as something she would regard as "activities" of her life. Presumably she never gave a thought to where they came from, as her parents would provide those, and all the other household supplies.

[210] Stephanie is now completely unable to take part in competitive athletics. Her very active social life has completely evaporated due to the after affects of the accident, and it is not known whether she will ever be able to rebuild any semblance of a social life. She is in school, but with massive support, and doing poorly. There are very serious doubts as to whether she will be able to complete the course of studies that she has embarked upon. Simplistically, when I see her as being completely prevented post-accident from engaging in the two most important activities of her life, and only marginally able to engage in the third, I conclude that she has been prevented from engaging in substantially all of the activities in which she ordinarily engaged.

[211] Further, it remains very much a question whether or not she will be able to engage in the two "activities" to which students should be looking forward – obtaining work commensurate with their education and living independently. I had earlier concluded that on the balance of probabilities she would not be able to obtain competitive employment. The persons working with her point out that in school, she is in a protected environment, and attempting to live independently will be a massive step for her.

[212] Looked at in this context, I view the thought of the Wawanesa, that she would cease to qualify when she could make it up the stairs in her home, as wrong. I think the insurer was correct in continuing coverage even when she was able to get about by herself, and was back at high school taking a few courses for rehabilitative purposes. I do not view her going away to Seneca College as a milestone that would justify a change in her entitlement. In her own home, she was in a protected and controlled environment. The expert testimony I have heard is that the protections and the controls continue in her life in residence at Seneca College. As I would see it at this point in time, she would be entitled to the non-earner benefits because she is still suffering from a complete inability to carry on what for her would be a normal life. I would presume that in her life, as best as it can be forecast now, a point at which she would have some ability to live normally would be when and if she is able to start to live independently. I therefore declare her to be entitled to the non-earner benefits, to the date of the trial.

[213] As discussed during the trial and particularly during submissions at the end, there are a number of matters which will still have to be addressed, including structuring, gross up, the issue of financial management and the allowance to be made therefor, a number of issues relating to future out-of-pockets, discount rates, perhaps issues of deductibility of the non-earner benefits from general damages, statutory deductions and limitations on awards, pre-judgment interest and costs. I would be obliged if counsel would bring to my attention any oversights, errors and omissions which they might find in these reasons, so that they can also be discussed and hopefully resolved.

[214] I would like to reconvene at a reasonably early date, at a time convenient to all, including the plaintiffs who faithfully attended throughout the trial. I leave it to Melanie Thomas, the Sarnia Trial Co-ordinator, to work out a time, and advise all concerned.

"Original Signed by Justice"

John H. Brockenshire

Justice

Released: January 3, 2003

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

STEPHANIE SUZANNE WALKER, GARY
WALKER, ROSEMARY WALKER, LAURA
WALKER, ALYSSA WALKER and CHRISTINE
WALKER, an infant by her litigation guardian
GARY WALKER

Mr. Carl E. Fleck, Q.C. and Ms. Cathy Wilde for
the Plaintiffs

- **and** -

DONALD J. RITCHIE, HAROLD MARCUS
LIMITED and THE WAWANESA MUTUAL
INSURANCE COMPANY

Mr. William G. Woodward, Esq for the Defendant
Ritchie and Marcus Limited and Mr. James Adams
for the Defendant Wawanesa

AND BETWEEN:

STEPHANIE SUZANNE WALKER, GARY
WALKER and ROSEMARY WALKER

Plaintiffs

Mr. Carl E. Fleck, Q.C. and Ms. Cathy Wilde for
the Plaintiffs

- **and** -

THE WAWANESA MUTUAL INSURANCE
COMPANY

Defendant

Mr. James R. Adams, Esq. for the Defendant

REASONS FOR JUDGMENT

Brockenshire, J.

Released: January 3, 2003